

SECTION 301 INVESTIGATION
Hearing on 05/19/2025

EXECUTIVE OFFICE OF THE PRESIDENT
OFFICE OF THE UNITED STATES TRADE REPRESENTATIVE

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PUBLIC HEARING ON PROPOSED ACTION IN SECTION 301
INVESTIGATION OF CHINA'S TARGETING OF THE
MARITIME, LOGISTICS, AND SHIPBUILDING SECTORS
FOR DOMINANCE

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MONDAY
MAY 19, 2025

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The Hearing was convened in the Main
Hearing Room, International Trade Commission,
500 E Street SW, Washington, D.C., at 10:00
a.m., Megan Grimball, Chair, presiding.

PRESENT

MEGAN GRIMBALL, Associate General Counsel,
Office of the U.S. Trade Representative;
Chair
THOMAS AU, Office of the U.S. Trade
Representative
SARAH BONNER, U.S. Small Business Administration
IAN COOK, International Trade Administration,
Department of Commerce
MARANDA KAN, Department of Homeland Security
Supply Chain Resiliency Center
BECXI SANCHEZ, U.S. Department of Transportation
SONJA SCHAEFER, U.S. Department of Labor
HENRY SMITH, Office of the U.S. Trade
Representative
ANDREW STEVENS, U.S. Department of Agriculture
RYAN SULLIVAN, U.S. Department of State
TYLER VAN PATTEN, U.S. Department of the
Treasury

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2 JUSTIN BECKER, Shanghai Zhenhua Heavy Industries
3 Co., Ltd.

4 GEORGE KOCHANOWSKI, Staxxon, Inc.

5 CARL BENTZEL, National Association of Waterfront
6 Employers

7

PANEL TWO

8

CARY DAVIS, American Association of Port
9 Authorities

10 CHARLIE JENKINS, Port Houston

11 STEPHEN EDWARDS, Virginia Port Authority

12 KATHY METCALF, Chamber of Shipping of America

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1 P-R-O-C-E-E-D-I-N-G-S

2 (9:59 a.m.)

3 CHAIR GRIMBALL: Good morning and
4 welcome. The Office of the United States Trade
5 Representative, in conjunction with the
6 Interagency Section 301 Committee, is holding
7 this public hearing in connection with the
8 Section 301 investigation of China's targeting of
9 the maritime logistics and shipping sectors for
10 dominance.

11 The United States Trade
12 Representative initiated this investigation on
13 April 17th, 2024. Based on the information
14 obtained during the investigation, USTR released
15 a public report on the investigation. This
16 report is available on the USTR website. As
17 detailed in the report, for nearly three decades
18 China has targeted the maritime logistics and
19 shipbuilding sectors for dominance.

20 And has employed increasingly
21 aggressive and specific targets in pursuing
22 dominance. China has largely achieved its
23 dominance goals, severely disadvantaging U.S.
24 companies, workers, and the U.S. economy
25 generally through less than competition and

1 commercial opportunities, and through the
2 creation of economic security risks from
3 dependencies and vulnerabilities.

4 Based on the information obtained
5 during the investigation as reflected in the
6 public report on the investigation, and taking
7 into account the public comments, as well as the
8 advice of the interagency Section 301 Committee
9 and advisory committees, the U.S. Trade
10 Representative determined that China's targeting
11 of the maritime logistics and shipbuilding
12 sectors for dominance is unreasonable, emburdens
13 or restricts U.S. commerce, and is thus
14 actionable under Sections 301(b) and 304(a) of
15 the Trade Act.

16 On February 21st, 2025, the U.S.
17 Trade Representative proposed that action was
18 appropriate, and to take responsive action in the
19 form of services, fees, and restrictions against
20 certain maritime transport services. USTR
21 established an electronic portal to receive
22 comments on a proposal, and held a two day public
23 hearing on March 23rd and 26th.

24 USTR received nearly 600 comments,
25 and nearly 60 individuals participated in the

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1 public hearings. On April 17th, 2025, the U.S.
2 Trade Representative determined to take action in
3 this investigation. After carefully reviewing
4 the public comments and testimony from the two
5 day public hearing, as well as considering the
6 advice of advisory committees and agencies that
7 regulate the services involved, the U.S. Trade
8 Representative determined that action is
9 appropriate.

10 And that appropriate and feasible
11 action of this investigation includes the actions
12 as provided in Annexes 1, 2, 3, and 4 of the
13 April 17th determination. The Federal Register
14 notice announcing the Trade Representative's
15 determination is available on the USTR web page
16 under the Section 301 investigations page.

17 And was published in the Federal
18 Register at 90 FR 17114 on April 23rd, 2025.
19 Consistent with the President's direction in
20 Executive Order 14269, Restoring America's
21 Maritime Dominance, and as reflected in the April
22 17th determination, the U.S. Trade Representative
23 also proposed additional duties on ship-to-shore
24 cranes and other cargo-handling equipment.

25 The purpose of this hearing is to

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1 receive public testimony regarding the proposed
2 additional duties on ship-to-shore cranes and
3 other cargo-handling equipment. Consistent with
4 the rules and procedures set forth in the April
5 23rd Federal Register notice, witnesses have
6 provided USTR and the Section 301 Committee with
7 a summary of their testimony in advance of
8 today's hearing.

9 As appropriate, witnesses have been
10 advised prior to this hearing that this hearing
11 will not address the actions in Annexes 1, 2, 3,
12 or 4 of the April 17th determination, as these
13 matters are outside the scope of the public
14 comment process established in Section E of the
15 April 23rd notice.

16 Should witness testimony address
17 issues outside the scope of the hearing, the
18 chair will ask the witness to redirect their
19 testimony, or to conclude. The Section 301
20 Committee will carefully consider today's
21 testimony, and all written comments in response
22 to the federal register notice, including post-
23 hearing rebuttal comments.

24 The Section 301 Committee will then
25 make a recommendation to the U.S. Trade

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1 Representative. We are pleased to have
2 international trade and economic experts from a
3 range of U.S. government departments and agencies
4 participating in today's hearing. If you could
5 please introduce yourselves?

6 MS. SCHAFER: Sonia Schafer,
7 Department of Labor.

8 MS. KAN: Maranda Kan, Department of
9 Homeland Security.

10 MR. VAN PATTEN: Tyler Van Patten,
11 Department of the Treasury.

12 MR. AU: Thomas Au, Office of the
13 U.S. Trade Representative.

14 MR. SULLIVAN: Ryan Sullivan,
15 Department of State.

16 DR. STEVENS: Andrew Stevens, U.S.
17 Department of Agriculture.

18 MR. COOK: Ian Cook, Department of
19 Commerce.

20 MS. SANCHEZ: Becxi Sanchez,
21 Department of Transportation.

22 MS. BONNER: Sarah Bonner, U.S. Small
23 Business Administration.

24 CHAIR GRIMBALL: And my name is Megan
25 Grimball from USTR, chair of the Section 301

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1 Committee. Before we proceed with panel one, I
2 will provide some procedural and administrative
3 instructions.

4 The April 17th determination
5 indicated that post-hearing comments would be due
6 seven days after the last day of the public
7 hearing. Because this hearing will conclude
8 today, post-hearing comments are due May 26th,
9 2025.

10 We expect to receive testimony from
11 seven individuals over the course of the hearing,
12 and we'll have two panels of witnesses. The
13 schedule has been posted on USTR's website. We
14 will have a brief break in between panels.

15 Each witness appearing at the hearing
16 is limited to five minutes of oral testimony.
17 The light before you will be green when you start
18 your testimony, yellow means you have one minute
19 left, and red means your time has expired. After
20 the testimony from each panel of witnesses, the
21 Section 301 Committee will have an opportunity to
22 ask questions.

23 All questions will be from department
24 and agency representatives; there will be no
25 questions accepted from the floor. Committee

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1 representatives will generally direct their
2 questions to one or more specific witnesses.
3 Again, post-hearing comments, including any
4 written responses to questions from the Section
5 301 Committee are due May 26th.

6 The rules and procedures for witness
7 submissions are set forth in the Federal Register
8 notice. We request that witnesses when
9 responding to questions be as concise as
10 possible, and likewise ask witnesses to be
11 understanding if and when the chair asks a
12 witness to conclude their testimony. In this
13 regard, witnesses should recall that they have a
14 full opportunity to provide more extensive
15 responses in their post-hearing submissions.

16 No cameras or video or audio
17 recording will be allowed during the hearing. A
18 written transcript of this hearing will be posted
19 on the USTR website as soon as possible after the
20 conclusion of this hearing.

21 And with that, Mr. Burch, we are
22 ready to begin.

23 MR. BECKER: Good morning,
24 Chairperson Grimball and members of the Section
25 301 Committee. Thank you for the opportunity to

1 testify regarding the proposed tariffs on ship-
2 to-shore cranes. My name is Justin Becker from
3 the law firm Baker McKenzie, and I present my
4 remarks today on behalf of Shanghai Zhenhua Heavy
5 Industries Co, Ltd., or ZPMC for short, in
6 opposition to the imposition of tariffs on STS
7 cranes and STS crane parts and components.

8 A detailed discussion of ZPMC's
9 position is going to be expressed in written
10 comments, and I highlight today a few of the main
11 points in those comments. ZPMC is a world-class
12 heavy equipment manufacturer that provides
13 competitive and high-quality STS cranes and
14 related products and services, and has been doing
15 so since 1992.

16 ZPMC's products are marketed and sold
17 in over 100 countries and regions, including the
18 United States, where they play a critical role in
19 the operations of U.S. ports. Specifically,
20 ZPMC's products allow for reliable, efficient,
21 and safe operation at U.S. ports.

22 ZPMC's market share is the result of
23 competition in the market, and the popularity of
24 ZPMC's products and services is due to their high
25 quality and reliability. ZPMC's success is also

1 due to its standing as a trusted brand based on
2 its excellent long-term reputation among U.S.
3 customers. ZPMC is also able to provide STS
4 cranes that meet the needs of client's customized
5 specifications and requirements efficiently.
6 This includes ZPMC's ability to deliver large-
7 scale equipment using ZPMC's fleet of
8 transportation vessels constructed and designed
9 specifically for this purpose.

10 And ZPMC also provides after-sale
11 services that ensure its cranes can maintain high
12 performing operations at their ports. In total,
13 ZPMC has become a longstanding, trusted, reliable
14 STS crane service provider to its customers.

15 As the committee is well aware, STS
16 cranes from China are already subject to 25
17 percent duties from a separate 301 investigation.
18 As well as additional reciprocal tariffs imposed
19 recently by President Trump. These tariffs have
20 already had a significant adverse effect on
21 ZPMC's ability to serve U.S. ports. The
22 imposition of the proposed additional 100 percent
23 tariff will completely undermine the ability to
24 serve these ports, which will result in
25 significant detrimental effects on U.S. ports and

1 the broader U.S. economy. These include
2 increased costs and reduced efficiencies for the
3 U.S. ports, heightened inflationary pressures on
4 the U.S. economy, and decreased U.S. jobs, and
5 stunted economic growth.

6 First, imposing tariffs on STS cranes
7 will significantly increase the cost for U.S.
8 port customers. Ports rely heavily on highly
9 specialized equipment like STS cranes to move
10 cargo efficiently. The additional costs will
11 undermine any competitiveness of U.S. ports,
12 leading to less efficient port supply chain
13 operations, and potentially causing delays and
14 increased costs for infrastructure and expansion
15 projects.

16 Second, the increased costs of
17 procuring and operating STS cranes will create
18 inflationary pressures on the U.S. economy,
19 higher operating costs for ports will flow down
20 to U.S. port users, resulting in increased costs
21 for consumer products and U.S. exports.

22 Third, the tariffs will negatively
23 impact employment opportunities in U.S. ports and
24 the communities that rely on them. Ports like
25 those in Georgia, Virginia, and California

1 support hundreds of thousands of jobs, and
2 generate significant economic activity.

3 Increased costs and reduced efficiencies will
4 hinder port operations and expansion, leading to
5 job losses and reduced economic opportunities.

6 The economic constraints caused by
7 the proposed tariffs will undermine U.S.
8 commercial interests, and national security in
9 several ways, including by disrupting U.S. supply
10 chains, reducing necessary port investments, and
11 forcing dependencies on aging infrastructure.
12 Efficient and cost-effective port operations are
13 essential for maintaining robust supply chains.
14 The proposed tariffs will disrupt these supply
15 chains by increasing costs and reducing the
16 efficiency of U.S. ports.

17 This disruption will have a cascading
18 negative effect on the availability of goods and
19 materials critical to the national economy and
20 security. In addition, the financial burden
21 caused by these tariffs will limit the ability of
22 U.S. ports to invest in new infrastructure and
23 technology, and will delay modernization of the
24 U.S. ports.

25 This reduction in investment will

1 hinder the modernization and expansion of port
2 facilities which are crucial for supporting the
3 logistical needs of the U.S. economy at large,
4 including the U.S. military and other national
5 security operations. The increased costs and
6 reduction in investment associated with the
7 tariffs will likely lead to delays in upgrading
8 or replacing aging STS cranes.

9 Ports may be forced to rely on
10 outdated equipment, which can compromise the
11 efficiency and safety of port operations. This
12 dependence on aging infrastructure can weaken the
13 resilience of U.S. ports, their capability to
14 promote the U.S. economy, and their ability to
15 support national security objectives.

16 These negative disruptive effects
17 will result without any near term benefits to the
18 U.S. economic or national security interests.
19 Importantly, the proposed tariffs will not
20 support the development of the U.S. industry in
21 the near future for several reasons. First, U.S.
22 ports need continued access to high tech STS
23 cranes and parts to operate.

24 There are no U.S. producers, and few
25 other non-Chinese manufacturers are currently

1 ready to satisfy U.S. demand, nor will they be
2 ready in a decade, or at least in the next two to
3 three years. The limited supply from non-Chinese
4 manufacturers means that U.S. ports will struggle
5 to find alternative sources for STS cranes,
6 leading to increased costs and delays. I see my
7 time is about to expire, may I finish briefly?

8 CHAIR GRIMBALL: Yes, please
9 conclude.

10 MR. BECKER: Thank you. The second
11 point is with regard to the amount of time and
12 investment. The third is with respect to the
13 global supply chain that is completely integrated
14 with major components from diversified global
15 suppliers. And therefore in conclusion, the
16 proposed tariffs on STS cranes will not advance
17 the stated goals of the Section 301
18 investigation.

19 We on behalf of ZPMC respectfully
20 request that USTR retract its proposed action,
21 and decline to impose tariffs on STS cranes. And
22 thank you for your time, I'm happy to answer any
23 questions the committee may have, and note that
24 any questions for which I cannot respond publicly
25 today, I will follow up in writing. Thank you.

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1 MR. BURCH: Next will be George
2 Kochanowski from Staxxon Incorporated. Welcome,
3 you have a total of five minutes, you may begin
4 when you're ready.

5 MR. KOCHANOWSKI: Morning. My name
6 is George Kochanowski, and I represent Staxxon, a
7 company with a bold solution to China's
8 overwhelming dominance in the production of
9 intermodal shipping containers. After reviewing
10 the Section 301 report, and the subsequent report
11 on April 23rd, it appears that the intermodal
12 container needs a bit more attention.

13 Before there was a container ship,
14 before there was a ship-to-shore crane, before
15 there was an intermodal chassis, there was
16 Malcolm McLean's intermodal shipping container.
17 Staxxon believes that a tariff of 20 percent to
18 100 percent on intermodal containers would be
19 difficult to manage and collect, and that
20 government would be the most penalized.

21 As all the containers purchased for
22 the DOD and other federal agencies are built
23 using components made in China. To summarize,
24 borrowing a phrase from your Section 301 report,
25 adding a tariff to containers would not be

1 practicable or effective to obtain the
2 elimination of China's acts, policies, and
3 practices.

4 Perhaps that may already be obvious
5 to many, but what is lacking are viable
6 alternatives. The problem extends beyond just a
7 container. What is not addressed in these
8 reports is that China also manufactures all the
9 components and assemblies necessary for the
10 maintenance and repair of every intermodal
11 container on Earth.

12 Individuals or entities outside of
13 China, like Staxxon, wishing to manufacturer
14 intermodal freight containers must rely on the
15 accessibility of these components. This, as I
16 mentioned before, includes all the built in the
17 USA containers procured for the DOD. If the
18 availability of these components and assemblies
19 were to be restricted, not only would the DOD be
20 disrupted, but the entire intermodal supply chain
21 here in America would disintegrate.

22 Which then becomes an issue of
23 national security. As an example, the USA has a
24 severe trade imbalance, with 75 percent of the
25 containers being returned empty, meaning we are

1 the largest exporter of nothing. Surely with
2 such an overabundance of empty containers there
3 would be plenty of exports, and yet the domestic
4 exporters are losing market share, why?

5 Because they can't get their hands on
6 empty containers, or can't afford to pay the
7 repositioning costs. This isn't an accident,
8 China has prioritized their supply chain, leaving
9 our supply chain exposed and vulnerable. South
10 Korea, India, and Vietnam having understood this
11 during COVID, are now building their own
12 container industries for their own national
13 security.

14 We must act too. Producing
15 containers that are made in the USA for the DOD
16 is a minimum requirement needing immediate
17 action. So, who owns these Chinese containers?
18 The largest owners of containers are the foreign
19 owned ocean carriers, with the top ten companies
20 controlling 85 percent of the market.

21 As an example the largest, MSC, owns
22 or leases over six and a half million TEU on 911
23 ships. Mason Line, the U.S.'s largest carrier,
24 owns or leases 49000 TEU on 20 ships. Simply
25 competing with a domestic product that would cost

1 significantly more than those sold in China would
2 not be effective to obtain the elimination of
3 China's acts, policies, and practices, or compel
4 these companies to buy American.

5 Someone has got to come up with a
6 better container. Staxxon has developed and
7 prototyped eight generations of empty containers,
8 folding technology, and reduces the number of
9 trucks, railcars, lifts, and emissions needed to
10 reposition empty containers without disrupting
11 the existing infrastructure.

12 The design which could replace the
13 existing container standard is simple, ISO
14 compliant, and protected by U.S. and global
15 patents. The made in the USA design offers
16 unmatched efficiency with an ROI of less than one
17 year. The global shipping industry, including
18 the Chinese, would need to buy American to stay
19 competitive.

20 Which brings me back to the major
21 finding in the Section 301 report. And I quote,
22 given China's dominance U.S. companies face two
23 obstacles, one, loss of business opportunities,
24 and two, attracting potential investments,
25 unquote. Staxxon has faced these two obstacles

1 for many years due to the low cost of Chinese
2 made containers, which are sold for less than the
3 price of the five tons of steel used to make
4 them.

5 And investors are very scared to
6 invest with Staxxon, fearing that Chinese
7 manufacturers will simply copy the design without
8 repercussions. So, here is my call to action to
9 the USTR. That the USTR recommend that domestic
10 container production be included in upcoming
11 legislation, such as the Ships Act for America,
12 starting with Staxxon's folding design.

13 Support us with incentives to scale
14 manufacturing, and watch the benefits unfold.
15 Security of supply, and a more resilient supply
16 chain free from foreign control. Let's not
17 respond to China's dominance, let's outpace it
18 with American ingenuity.

19 MR. BURCH: Thank you, Mr.
20 Kochanowski. Our next panel witness will be Carl
21 Bentzel, with the National Association of
22 Waterfront Employers. You have a total of five
23 minutes, and you may begin when you're ready.

24 MR. BENTZEL: Thank you for the
25 opportunity to speak today, and provide industry

1 comments on the proposed action in the Section
2 301 investigation of China's targeting of the
3 maritime logistics and shipbuilding sectors for
4 dominance. NAWE is a non-profit trade
5 association whose member companies are privately
6 owned stevedores, marine terminal operators,
7 MTOs, and other U.S. waterfront employers.

8 NAWE's member companies engage in
9 business at the major U.S. ports on the Atlantic
10 and Pacific coast, the Gulf of Mexico, the Great
11 Lakes, and Puerto Rico. With over 50 members,
12 NAWE's membership handles the vast majority of
13 the nation's containerized trade, a substantial
14 portion of the nation's break bulk trade, and a
15 majority of the nation's cruise ship passengers.

16 NAWE members are in the business of
17 running our nation's ports, and our members
18 handle the nation's supply chain. Any action
19 impacting trade through our ports will be felt
20 first by the members of my association, which
21 carry the vast majority of our nation's trade.

22 We have closely reviewed the report
23 on the Section 301 investigation of China's
24 targeting of the maritime logistics and
25 shipbuilding sectors for dominance, and can find

1 no fault in the conclusion. The Chinese
2 government had established long term goals for
3 industrial planning that engages policies that
4 depress costs or provide advantages in order to
5 establish market dominance in critically
6 important sectors that are in the interest of
7 national security of the PRC.

8 Through PRC government initiative,
9 the United States is now vulnerable to market
10 manipulation through Chinese market dominance in
11 the maritime logistics and shipbuilding sectors.
12 As the initial operators of the U.S. supply
13 chain, the business of moving freight typically
14 starts with a NAWE member.

15 We connect ocean to land side
16 movement, and in my view are the singular most
17 important cog in securing the nation's supply
18 chain. In response to the response for comment
19 on Annex 5, now we would make the following
20 comments. STS cranes and larger cargo handling
21 equipment, along with a skilled labor force,
22 could be the most important elements governing
23 the efficiency of our industry's ability to
24 efficiently move the nation's trade.

25 While the U.S. report on maritime

1 dominance does reflect action on the part of the
2 PRC to establish market dominance in STS crane
3 manufacture, the implementation of penalties to
4 remedy it is fraught with the challenge of
5 avoiding adverse national economic impact because
6 of the importance of the STS CHE technology to
7 our trade.

8 Already the maritime trade is
9 suffering with severe reductions in service as a
10 result of the tariffs on Chinese manufactured
11 goods. Further market dislocation may adversely
12 impact the entire U.S. economy. NAWA would make
13 the following five suggestions. NAWA has a
14 number of members who have contracted for and
15 initiated fabrication of Chinese built STS CHE
16 equipment well before any action was suggested or
17 even contemplated by USTR, or even trade actions
18 contemplated by the administration.

19 They should be exempted from any
20 penalties. To do so otherwise would be
21 arbitrary. NAWA would suggest that any newly
22 built STS CHE equipment that had initiated
23 fabrication before December 31st, 2024, be
24 exempted from tariff penalties. Number two, USTR
25 penalties on STS CHE should be the exclusive

1 penalty for tariff penalties.

2 USTR action taken in response to
3 Chinese market dominance should be the exclusive
4 remedy for any actions for the import of Chinese
5 STS CHE. To make penalties cumulative is in
6 essence, a double penalty, overly onerous, and
7 non-responsive to the underlying trade action
8 contemplated by USTR.

9 Three, NAWE supports a three year
10 transition before the application of tariffs on
11 Chinese STS and CHE. Simply put, the market
12 other than Chinese manufactured STS and CHE is
13 not ready to produce what will be needed for the
14 U.S. MTO market. The market will have to develop
15 before it is capable of serving effective
16 provision of service.

17 An alternative approach would be to
18 allow first tariff free Chinese made STS and CHE
19 conditioned upon purchase of an equal amount of
20 non-Chinese STS CHE, and then after a similar
21 time transition, to allow the purchase of tariff
22 free Chinese STS CHE conditioned upon the
23 purchase of domestic STS CHE.

24 NAWE would urge, consistent with
25 presidential order, that tariff penalties

1 collected as a result of this action be reserved
2 for the use of MTOs and STS CHE companies willing
3 to build out a U.S. domestic market. USTR
4 penalties should also exclude penalties for
5 existing parts and maintenance for existing
6 Chinese STS CHE.

7 Much of this equipment is unique, and
8 penalizing an MTO for continuing its maintenance
9 program could jeopardize workplace safety. I
10 look forward to answering any questions that you
11 might have. Thank you.

12 MR. BURCH: Thank you, Mr. Bentzel.
13 Madam Chair, that concludes this panel's
14 testimony.

15 CHAIR GRIMBALL: Thank you. Now we
16 will proceed with some questions from the panel.

17 MR. AU: Good morning, this is Thomas
18 Au from the Office of the U.S. Trade
19 Representative. Mr. Becker, I have a few
20 questions on behalf of your client. As context,
21 Section 5 of Executive Order 14269 directs that
22 USTR consider tariffs on ship-to-shore cranes
23 manufactured, assembled, or made using components
24 of PRC origin, or manufactured anywhere in the
25 world by a company owned, controlled, or

1 substantially influenced by a PRC national.

2 That draws me to ZPMC's for example,
3 2023 annual report, which says in 2023 the
4 company thoroughly studied and implemented the
5 spirit of the 20th National Congress of the
6 Communist Party of China, and General Secretary
7 Xi Jinping's important instructions on state
8 owned central enterprises.

9 Conscientiously implemented the
10 decision, arrangements, and work requirements of
11 the party's central committee, the state council,
12 and the state owned Asset Supervisions and
13 Administration Commission, earnestly fulfilled
14 the requirements under the company law, the
15 articles of association of the company, relevant
16 laws, regulations, and normative documents.

17 And fully adopted the 1544 overall
18 development strategy. Could you explain what is
19 ZPMC's relationship to the Chinese Communist
20 Party?

21 MR. BECKER: ZPMC is a company with
22 independent and autonomous management in
23 operation, and as an independent corporate legal
24 entity established under Chinese law, the company
25 complies with all applicable laws and

1 regulations, including the company law of
2 People's Republic of China.

3 This is consistent with all
4 enterprises, including foreign invested
5 enterprises established and operating in China,
6 and moreover ZPMC is a company listed on the
7 Shanghai Stock Exchange.

8 MR. AU: Thank you. Are you able to
9 explain who are ZPMC's major investors?

10 MR. BECKER: I can respond to that in
11 post-hearing comments.

12 MR. AU: Okay, and if you could also
13 identify what their relationship to the Chinese
14 Communist Party is as well?

15 MR. BECKER: Yes.

16 MR. AU: Does ZPMC receive any
17 financing from Chinese sovereign wealth funds,
18 from Chinese state owned or controlled banks, or
19 from China's national, provisional, or local
20 governments?

21 MR. BECKER: ZPMC like any domestic
22 and foreign enterprises operating in China,
23 operate and enjoy the rights and guarantees
24 provided by the laws and regulations, and they
25 independently organize their production and

1 operations based off of market demand. In terms
2 of investments, we can respond specifically on
3 that point, but note that the management is
4 operated by a board of directors aligning with
5 the resolution of shareholders meetings.

6 That are looking to take on the
7 maximization of business benefits and the
8 realization of shareholder's interests as the
9 primary principle of its operations. And it
10 obtains orders by means of market competition,
11 but we can respond specifically to the investment
12 levels in post-hearing comments.

13 MR. AU: Thank you. Another point,
14 can you confirm what ZPMC's market share is for
15 ship-to-shore cranes in operation at U.S. ports?

16 MR. BECKER: Eight percent. Sorry,
17 not its market share, but market share for its
18 own sales to the world, it represents eight
19 percent. As to the U.S. market share of ZPMC
20 versus all others providing to the U.S., I need
21 to provide that in post-hearing.

22 MR. AU: Okay, so my next question is
23 going to be in operations globally. So, do I
24 understand your answer is eight percent globally?

25 MR. BECKER: The U.S. represents

1 eight percent of ZPMC's total market.

2 MR. AU: The U.S. represents eight
3 percent of ZPMC's, okay.

4 MR. BECKER: But global market share
5 I will have to provide in post-hearing.

6 MR. AU: I took from your testimony
7 that ZPMC's products are marketed and sold in
8 over 100 countries, can you kind of delve into
9 that a little bit further? In how many port
10 projects outside China are ZPMC's products used?
11 For example I assume that a country may have
12 multiple port projects.

13 MR. BECKER: Yeah, it serves
14 customers in 20 countries, including the United
15 States, and it employs 10000 people across the
16 globe. With respect to the United States, it
17 serves Los Angeles, Long Beach, Philadelphia,
18 Seattle, Houston, Oakland, Tacoma, New Jersey,
19 Portsmouth, Virginia, Charleston, South Carolina,
20 Baltimore, and Jacksonville.

21 And with regard to other operations
22 worldwide, I can provide more details in post-
23 hearing.

24 MR. AU: Thanks. Sorry, to clarify,
25 I understand they're marketed and sold in 100

1 countries, or 20 countries?

2 MR. BECKER: So, it has 20 customers
3 worldwide, which operate and is sold in over 100
4 countries.

5 MR. AU: Thank you. Who are ZPMC's
6 major competitors?

7 MR. BECKER: I can provide that in
8 post-hearing.

9 MR. AU: Can you describe as well,
10 those competitors size by some metric, sales
11 revenue, output, capitalization, or physical
12 footprint compared to ZPMC?

13 MR. BECKER: Yes.

14 MR. AU: Does ZPMC produce cranes or
15 components for its competitors?

16 MR. BECKER: I will need to respond
17 to that in post-hearing.

18 MR. AU: Are ZPMC's foreign
19 competitor's cranes built wholly, or in part in
20 China?

21 MR. BECKER: I will need to respond
22 to that in post-hearing.

23 MR. AU: Okay. Moving to rubber tire
24 gantry cranes, does ZPMC produce rubber tire
25 gantry cranes?

1 MR. BECKER: That I would need to
2 respond to in post-hearing.

3 MR. AU: Okay. A little bit about
4 steel, where does ZPMC source the steel used in
5 its products?

6 MR. BECKER: So, its sourcing is
7 globalized, with all ancillary parts purchased at
8 arm's length market prices without distinguishing
9 between countries, regions, or types of
10 enterprises. But in terms of specific countries
11 of supply, I will need to respond in post-
12 hearing.

13 MR. AU: On that point too, if you
14 could also respond to what types of steel
15 products are used as inputs, and on whether raw
16 materials are involved.

17 MR. BECKER: Yes.

18 MR. AU: Could you tell us a little
19 bit about where ZPMC's production facilities are
20 located?

21 MR. BECKER: I can provide specifics
22 in post-hearing brief.

23 MR. AU: Okay. Are you aware of
24 whether ZPMC has facilities in other countries?

25 MR. BECKER: ZPMC has subsidiaries

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1 that are in other locations, including the United
2 States, which provide after market services.
3 With respect to any production facilities, I
4 would have to respond post-hearing.

5 MR. AU: Thank you.

6 MS. KAN: I'm Maranda Kan, I'm with
7 the Department of Homeland Security, I have some
8 additional questions. In September 2024, the
9 Select Committee on the CCP issued a report
10 entitled handling our cargo, how the People's
11 Republic of China invests strategically in the
12 U.S. maritime industry.

13 This report says in part most third
14 party components are sent to ZPMC's Changxing
15 Base on Shanghai's Changxing Island near the
16 Jiangnan Shipyard, where the People's Liberation
17 Army Navy's most advanced warships are built.
18 This proximity is concerning, and the committees
19 were further troubled by the discovery of
20 unauthorized cellular modems installed on STS
21 cranes produced in the PRC and bound for U.S.
22 ports.

23 According to sensitive documents
24 reviewed by the committees, these cellular modems
25 not requested by U.S. ports or included in

1 contracts were intended for the collection of
2 usage data on certain equipment. This
3 constitutes a significant back door security
4 vulnerability that undermines the integrity of
5 port operations. Where does ZPMC source its
6 components, and from what suppliers?

7 MR. BECKER: To the extent that there
8 were, with respect to these allegations, ZPMC
9 respectfully believes that there is no evidence,
10 and that the U.S. Marine Administration released
11 a public report stating that after a year long
12 investigation, U.S. Coast Guard teams have not
13 found any unique vulnerability or exploitation
14 specific to foreign STS cranes, including ZPMC.

15 But I can address the specific
16 details as to where it sources its components in
17 post-hearing submission.

18 MS. KAN: And does ZPMC export parts
19 and components that are produced in China to
20 third countries outside of China that are then
21 assembled into STS cranes?

22 MR. BECKER: The answer is yes, but I
23 can provide more details as to what specific
24 components and parts in post-hearing.

25 MS. KAN: Okay. Are there

1 contractual agreements in place to use ZPMC
2 technicians?

3 MR. BECKER: In the United States,
4 ZPMC North America is the subsidiary, they're as
5 support, but with respect to what services they
6 provide, I can provide details in post-hearing.

7 MS. KAN: And has ZPMC requested
8 remote access to its cranes operating at U.S.
9 ports? That is has ZPMC requested remote access
10 to its cranes operating in other foreign ports?

11 MR. BECKER: I'm sorry, what was the
12 second part of that question?

13 MS. KAN: I'm sorry, I connected it a
14 little bit incorrectly, let me start again. Has
15 ZPMC requested remote access to its cranes
16 operating at U.S. ports, and has ZPMC requested
17 remote access to its cranes operating in other
18 foreign ports?

19 MR. BECKER: Got it. I would
20 highlight the comments that were submitted in the
21 previous 301 investigation, as well as the
22 comments that are being submitted in this
23 investigation on this point. And to the extent
24 that further detail is required, we will provide
25 that in post-hearing submission.

1 MS. KAN: Okay.

2 MR. AU: This is Thomas Au from the
3 Office of the U.S. Trade Representative again.
4 Could you explain ZPMC's relationship to Chinese
5 shipping lines?

6 MR. BECKER: I will provide that in
7 post-hearing submission.

8 MR. AU: And to the extent you're
9 able, ZPMC, what is ZPMC's relationship to
10 Chinese port and terminal operators? For example
11 China Merchants Port?

12 MR. BECKER: I will include that in
13 the post-hearing.

14 MR. AU: Thank you.

15 MR. VAN PATTEN: Thank you. Tyler
16 Van Patten, Department of the Treasury. Mr.
17 Kochanowski, do you recommend duties on
18 containers from China, and if so, at what rate?
19 If not, what specific remedies, if any, do you
20 recommend?

21 MR. KOCHANOWSKI: That's a great
22 question, we don't think there should be any kind
23 of tariff on containers because there are three
24 or four international laws that U.S. is
25 signatories to, that says the container is simply

1 the box that travels through the port, and it's
2 the products inside that should be tariffed, or
3 charged.

4 With 100 percent of the containers
5 being made in China, and they're owned by the
6 shipping companies, it's -- the container comes
7 into the country, it may not leave, it may leave
8 six months later, it becomes a managerial event,
9 and an overhead that would be borne by us, the
10 customer.

11 The DOD and federal agencies however
12 consume these containers for various functions,
13 FEMA, DOD stores things in them, moves things in
14 them, customizes them, puts doors and windows in
15 them, turns them into hospitals and the like.
16 And all of those parts are made in China, shipped
17 to the United States, and are assembled here,
18 hence built in the United States, not made in the
19 United States.

20 So, putting any kind of penalty on
21 the container really serves no purpose. What you
22 really want to do is start making all of those
23 components here in the United States that are
24 necessary to support the DOD and other federal
25 agencies. FEMA could serve, if you can imagine

1 bringing truckloads of folded containers down to
2 Katrina, or floating them down if the roads were
3 closed.

4 And you could build really sturdy
5 shelters in a matter of minutes requiring
6 nothing. I've seen DOD facilities that had
7 potable water, latrine, and the like built into a
8 container and delivered to Afghanistan and the
9 like. There are any number of things that the
10 government could consume for the storage and
11 making of these devices in the United States, as
12 well as our partners.

13 We build containers in the United
14 States, I've built containers in Poland. These
15 are the kind of places that could benefit from
16 having that functionality. I've talked to people
17 in South Korea who supply things for the United
18 States under the built in the United States
19 regime, and I asked them where they source their
20 steel from.

21 Now, remember, China consumes about
22 50 billion pounds of steel a year to produce
23 these containers, dwarfing shipbuilding and
24 cranes. And so, I said where does Cosco make
25 COR-TEN steel? That's in our plant in China.

1 Interesting.

2 Some people are going to talk about
3 intermodal chassis. Chassis construction is the
4 same way: U.S. companies own them, but they have
5 to buy the axles from Canada or Mexico. Those
6 high speed lathes and things are not in Mexico,
7 or in Canada. So, you begin to look at from a
8 bottom-up position, it's the container that's the
9 root of this, then comes the chassis, then comes
10 the ship-to-shore crane. And then, ultimately,
11 the container ship itself.

12 I agree that there shouldn't be
13 anything on ship-to-shore cranes, either, because
14 we don't make them here. But we should make a
15 better one here, and then have the world come to
16 us with a value proposition, not just a
17 commodity. So, a very long answer.

18 But you see where this becomes
19 intertwined at each step. I see someone here
20 from the Department of Agriculture. A few years
21 ago 1.1 billion pounds of almonds went foul
22 because they couldn't get their hands on
23 containers 25 miles away. And the cotton
24 industry in Texas took, how should I say this
25 without exposing my New York city roots?

1 They lost a position because they
2 couldn't get access to empty containers, yet
3 there were tens of thousands of them congesting
4 the ports of LA, Long Beach, and New Jersey. So,
5 I believe you have to take a look at this thing
6 from a bottom-up scenario, that when you have a
7 cotton company that can't move its cotton,
8 there's competition.

9 When you have a soy bean farmer in
10 Indiana or Ohio who then has to put it on a barge
11 and lose half his margin, or doesn't have any
12 margin anymore because of the consumption, you
13 now have a bigger issue. And yet, 75 percent of
14 the containers leaving the United States, 17
15 million TEU annually, leave empty.

16 So, there has to be some restatement
17 here that focuses on how we realign this
18 transport. I can give you line and verse on a
19 bunch of other details if you have any other
20 questions.

21 MR. COOK: Ian Cook, Department of
22 Commerce. Mr. Kochanowski, you've mentioned the
23 parts and components, assembly pieces for
24 containers, are there any specific parts,
25 components, assemblies that USTR should consider

1 adding additional duties, and if so, why?

2 MR. KOCHANOWSKI: There are eight
3 corner fittings on every box, they weigh about 24
4 or 25 pounds, whether or not they pass ISO, which
5 is another topic. I think that in order to make
6 every container for the DOD, you've got to buy
7 eight corner fittings, so I wouldn't touch it.
8 Because why would the DOD want to spend more
9 money on something like that?

10 MR. COOK: To what extent do the
11 parts, components, assemblies of containers
12 imported from countries other than China contain
13 Chinese content, and should those imports be
14 subject to additional duties?

15 MR. KOCHANOWSKI: Different question,
16 same answer. That even though the corner
17 fittings could go to Canada, you turn them upside
18 down, they're stamped for certification, and
19 there are three companies in the United States
20 that allege to sell corner fittings, I order
21 them. You flip them over, and they send
22 certification, and it is for a plant in China.

23 So, even though it may come from
24 another country, you won't find anything other
25 than Chinese certs.

1 MR. COOK: Yeah, okay. How important
2 are Chinese components in the assembly and repair
3 of Staxxon's containers?

4 MR. KOCHANOWSKI: Unfortunately,
5 and/slash fortunately, I had to buy all of those
6 parts to build my container out of those parts,
7 and I found all of the top four failure modes of
8 containers in the world. The doors don't close,
9 forklifts hit the bottom and the top headers and
10 sills, so I designed around that, so they would
11 be a better product.

12 I don't come from the shipping
13 industry. I come from the chemical industry
14 where you have to outperform your competitor.
15 So, we look at the top failure modes of the
16 containers today and improved upon them. So, a
17 Staxxon container is designed to be resilient, is
18 designed to be sustainable.

19 If you could move all the containers
20 leaving LA with 80 percent less trucks, I think
21 you'd notice it. Port congestion, and then if
22 the ships are now slow steaming, you've got an
23 environmental positive impact like no other. I
24 mean, this buying the parts has been tough,
25 because I had to take the Chinese parts and turn

1 it into an American part.

2 Now, were the parts made to the
3 standards that they represented? Three times
4 I've been the head of the U.S. delegation to the
5 ISO Standards Committee for Freight Containers.
6 Believe me, there's a discussion globally about
7 the capabilities and quality of the materials.

8 MS. BONNER: Mr. Kochanowski, thank
9 you for this information. I also wanted to ask
10 about your written statement, and your comments
11 noted that Chinese made intermodal containers are
12 sold for less than the five tons of steel that
13 are used to make them. What is the basis for the
14 price of steel used in this calculation?

15 MR. KOCHANOWSKI: The price of a ton
16 of a roll of COR-TEN steel in the United states
17 is \$1,124. I can buy a painted container for
18 \$4,000. There are five tons of steel in each
19 container. By the way, there's paint, and wood,
20 and screws, and a lot of leg work that goes in
21 there, too.

22 MS. BONNER: If I could ask one
23 follow-up, in moving containers around and making
24 them more accessible for U.S. businesses,
25 especially small businesses, do you have any

1 suggestions other than of course use of the
2 product that you're describing? Are there any
3 other suggestions you have?

4 MR. KOCHANOWSKI: Actually Staxxon
5 doesn't intend to be the manufacturer, what we
6 intend to do is license our technology. And so,
7 you'll have multiple businesses that will now
8 make doors, corner fittings, locking rods, twist
9 locks, roof panels, and then bring them together
10 like you do an automobile to assembly facilities.

11 So, from a small business
12 administration, I've always envisioned that there
13 would be hundreds of small facilities that are
14 working precisely on one set of things. Whereas
15 in China they bring rolls of steel, and it just
16 goes through continuously. They don't require
17 any other distributors, maybe screws type of
18 thing, and wood.

19 But they just do everything all in
20 one plant. So, taking something from the U.S.
21 automobile industry, you would have multiple
22 manufacturers of multiple subsystems into an
23 assembly in multiple places. And the biggest
24 plus to that is that with the cost of
25 repositioning being so high, even an American

1 made product would get you a return on investment
2 of say one year.

3 Whereas, today, the inexpensive
4 container costs about \$35,000 a year in
5 repositioning costs. The hidden benefit is that
6 everybody who wants to buy -- needs to use an
7 empty container could pick up the phone and get
8 one delivered new every day.

9 Whereas, today, people spend time and
10 money searching for empty containers to bring
11 them to their locations in order to move goods in
12 them, especially the agricultural folks. And the
13 meat industry, I guess that's in the same
14 bailiwick. So, the premise is transformational
15 change of how you do the production, which then
16 lifts all the boats, since this is maritime.

17 DR. STEVENS: I'm Andrew Stevens from
18 the Department of Agriculture. Mr. Kochanowski,
19 when will your folding intermodal containers be
20 produced and available on the market, and how do
21 tariffs impact you or your customers'
22 calculations?

23 MR. KOCHANOWSKI: I have containers
24 in storage ready to go. We are trying to setup
25 manufacturing in the United States, and we are

1 having one heck of a time running into getting
2 investment because of what I talked about. On
3 March the 3rd of this year I was in Rotterdam,
4 where someone said just send us the drawings, and
5 we'll get them down to China, and we'll work
6 something out with you.

7 I'm coming back to the United States,
8 and saying I think this is an American product,
9 these should be made here. Opening up our steel
10 mills, we will not pollute the air the way steel
11 mills pollute in China. If we can expand on our
12 various chemical industries for paint and the
13 like, you have lots of wins going on here with
14 the end product actually getting a return on
15 investment.

16 So, I have some in storage in
17 Delaware, I've got a lot of material laying on
18 the ground in Poland, and with a little bit of
19 help and support here, I could start making these
20 things very rapidly, unlike the shipbuilding,
21 which could take a decade, we could have product
22 on the market in under a year.

23 And it's the holy grail of the
24 container business to be able to ship two, three,
25 four, or five in the space of one.

1 DR. STEVENS: Thank you.

2 MR. SULLIVAN: Ryan Sullivan,
3 Department of State. Mr. Bentzel, as
4 commissioner of the FMC you released a report
5 which remarked it is the author's view that the
6 global supply chain is too interdependent not to
7 have broad access and manufacturing capabilities
8 for intermodal operational equipment.

9 The United States should assess
10 whether given market dominance that further trade
11 action be contemplated. In your view, what
12 additional duties would be appropriate to reduce
13 U.S. dependence on Chinese equipment, and to
14 restore U.S. manufacturing of cranes, chassis, or
15 containers?

16 MR. BENTZEL: So, I'd answer it in
17 two parts, the question of whether or not the
18 duties are sufficient to create deterrents to use
19 equipment that's manufactured in a country that's
20 exerted dominance is one issue. The second issue
21 really has to be how can you develop a market
22 that has been eviscerated as a result of the
23 market dominance?

24 In the case of containers for
25 instance, 100 percent of the containers are

1 manufactured in China right now. So, penalties
2 on containers, I think 36 million containers
3 coming into the United States, so if you put a
4 penalty of \$500 on it, it would be excessive, it
5 would be crippling with respect to the industry.

6 And the challenge I think George
7 touched upon is: how do we develop that market
8 for the United States to be competitive in the
9 future given the status of the market? So, I
10 favor an approach that would be a dual pronged
11 approach, some level of incentive on the tariff
12 or the penalty, and utilization of some level of
13 funding to support development of a domestic
14 industry.

15 So, the United States may never be
16 able to compete with the Chinese in the
17 production of a steel box, but what we should be
18 looking at is in the future there will be smart
19 containers. These will have information related
20 to where cargo is being shipped, and so we should
21 be looking at next generation technology, and a
22 way to stimulate that to respond to market
23 concerns.

24 So, I think you need to set your
25 penalties, and your tariffs in order to create an

1 incentive not to rely on that market in the
2 future, cognizant of the fact that you could
3 impact the national economy as well, so it's a
4 balancing act.

5 And I say without action at this
6 point, because this market has suffered so much
7 distress in terms of competition, you need to
8 take affirmative action to support development of
9 that technology in the future in the United
10 States. So, it's a balancing act, and it's
11 something that you're looking at right now.

12 But overly onerous tariffs on product
13 that's necessary can hurt the economy, hurt
14 industry. On the other hand, this has been a
15 distorted market as a result of the actions of
16 the Chinese government in creating market
17 dominance, and it exists in totality essentially
18 right now.

19 So, I think you also need to combine
20 it with efforts to materialize something that can
21 work domestically.

22 MR. KOCHANOWSKI: If I can add one
23 other piece, you mentioned the word smart
24 containers. The Chinese are pushing forward
25 something called LOGINK, L-O-G-I-N-K, where they

1 want to get some information. I happen to be on
2 a committee of ISO that's looking at a standard
3 for the future for smart containers, and the
4 Chinese are pushing for a regional database
5 exclusive of the international one.

6 MR. SULLIVAN: That's very helpful
7 information. I do want to ask a follow up
8 question for Commissioner Bentzel. Why haven't
9 the existing Section 301 tariffs of 25 percent
10 been enough for example for the ship-to-shore
11 crane makers to invest in the United States?

12 MR. BENTZEL: I think there's such a
13 discrepancy between the existing market for
14 Chinese STS, and what they can sell at, and other
15 jurisdictions. We have some manufacturer -- I
16 think the statistic that you used was 96 percent
17 of the market is Chinese manufactured, I think
18 that's probably as good as any statistic in terms
19 of identification.

20 So, the market for non-Chinese
21 manufactured STS is relatively small. So, some
22 of our members have purchased equipment from a
23 couple of the STS companies that manufacture
24 outside of China, but it's not enough to sustain
25 the U.S. market alone. So, the 25 percent tariff

1 is clearly not enough in terms of creating an
2 inducement given the market that exists today,
3 and the dominance that the Chinese STS market
4 enjoys.

5 So, it really hasn't impacted that.
6 It takes awhile for us to come to an agreement on
7 an STS package. Our companies sometimes will
8 engage in negotiations for a period of time one
9 or two years before the ultimate transaction is
10 culminated in use in the United States. So,
11 there is some delay in the market response.

12 So, what we're seeing coming into the
13 market probably started two years ago when this
14 was not even conceived.

15 MS. SANCHEZ: Becxi Sanchez,
16 Department of Transportation. Mr. Bentzel, based
17 on your experience immediately after the
18 pandemic, how do you estimate shortages on
19 containers will affect port operations?

20 MR. BENTZEL: That's a good question.
21 When I assessed it I issued a report, there is
22 three major manufacturers of containers in China,
23 primary manufacturers, in advance of the pandemic
24 they agreed publicly to suppress production of
25 containers. I think they went from three

1 operating shifts down to one.

2 This was intended to elevate the
3 price at which they could manufacture containers,
4 and it was done just in advance of the pandemic.
5 And subsequently we had a surge, about a 27
6 percent increase in imported products after they
7 had taken action to increase prices through
8 suppressed production.

9 We were unable to handle the volumes
10 of imported cargo that were coming into the
11 United States because of the increases itself, we
12 weren't positioned as well to accept that with
13 equipment, intermodal chassis were not available.
14 And then it became rapidly apparent that usually
15 if a shipping line needs to get a container to
16 get imported cargo, they will go directly to the
17 Chinese manufacturers and purchase it, even if
18 there is congestion in trying to get that trade
19 back to China.

20 And I believe that it substantially
21 increased inflationary costs in the United States
22 as a result of market congestion. The average
23 container used in U.S. trades might transit six
24 or eight times back and forth between Europe and
25 the United States. And during the pandemic we

1 were at about three transits a year because of
2 delays, and in part some of those were related to
3 suppression of production of containers.

4 So, I believe that inflation was in
5 large part caused because of congestion in our
6 shipping market.

7 MS. SANCHEZ: Thank you.

8 MS. KAN: Maranda Kan, Department of
9 Homeland Security. Mr. Kochanowski, I wanted to
10 circle back to the comment, and the issue you
11 raised around logging, and ask you if you could
12 elaborate a bit more on what you're seeing in the
13 working group that you're chairing.

14 MR. KOCHANOWSKI: Well, I'm not
15 chairing that one, I'm just a participant. But
16 I'm from the United States on that group, and so
17 we have people from England, Germany, Russia,
18 China, and others that are there. And in the
19 development of the smart container specification,
20 there are definitions being created, and we were
21 -- we have records of that, that the Chinese
22 thought that we weren't doing enough to get
23 enough information through the standard.

24 And we were just trying to determine
25 is this a smart box, or a very smart box, or an

1 extremely smart box. In other words doors open,
2 is there temperature in there, are there people
3 in there type of thing. And whereas they wanted
4 to hook it up to their regional database so they
5 would know what's inside the container, which of
6 course is not good.

7 And there is pallet level data
8 collection as well, but that's for between the
9 customer and the manufacturer, and it should have
10 no impact to the people doing the shipping. So,
11 the Chinese are offering LOGINX for free, which
12 of course is an enticement. And so, what they do
13 with that information is unknown.

14 And they are resisting the ISO
15 standard for -- resisting is the wrong word,
16 they're trying to get their -- to eliminate the
17 need for them to participate in the ISO standard,
18 because they're going to be providing one that
19 will provide more information to everyone in
20 their words. I have my doubts.

21 MS. KAN: And what kinds of U.S.
22 actions or tariffs might be taken in order to
23 help dissuade that kind of effort?

24 MR. KOCHANOWSKI: I notified the U.S.
25 Coast Guard after that first meeting to let them

1 know hey, I'm just a guy trying to make
2 containers, but when I was in a meeting where
3 someone was doing this, I don't know what a
4 tariff would do to this because we're probably
5 three to five years from that standard being
6 published.

7 But various countries are trying to
8 get their positions implemented in this. The
9 smart -- Carl made a very good point about
10 production, and the slow down of manufacturing
11 containers. But if you start putting antennas in
12 containers, and start putting other information,
13 gathering things inside a container, the
14 container moves everywhere.

15 So, it's a matter of not restricting,
16 but identifying what is appropriate and
17 inappropriate to be part of the information
18 seeking. I hope that answers the question.

19 MS. KAN: Thank you.

20 MS. SCHAFER: Sonja Schafer,
21 Department of Labor. For Carl Bentzel, you
22 referred to a working group working on
23 recommendations for the transition of crane
24 manufacturing back to the United States, can you
25 share any of the recommendations, or the work of

1 this group so far?

2 MR. BENTZEL: Yeah, it's really my
3 members, maritime MTOs, the industry is concerned
4 with how do we get to a point if the U.S.
5 government institutes penalties on STS cranes
6 that we can rely on a market in the United
7 States, or first a market that's outside of China
8 for production of STS cranes, and then ultimately
9 facilitation of a domestic market.

10 So, my members asked that I meet with
11 the STS industry, we're under discussions about a
12 lot of elements that would need to be addressed
13 in order to be able to move forward with
14 production that would allow us to get the
15 equipment that we need for operations. But to
16 transition to ultimately a domestic market, so
17 those discussions are happening as we speak.

18 So, I will have some more discussions
19 with the STS industry, at a certain point I hope
20 to come up with recommendations that we could
21 share with my industry, the MTO industry, to see
22 if it's something that we could jointly support.
23 We'll be talking with the American Association of
24 Port Authorities and others involved in this, but
25 the effort is to identify impediments to allow

1 the construction of STS equipment in the United
2 States, and see if we can get some support for
3 overcoming those.

4 And ultimately the penalties are one
5 aspect of deterrence, but they don't necessarily
6 respond to what we will need, which is some
7 transition to a market that really is not present
8 right now. There is some production in Europe
9 that can be substituted, but probably not enough
10 at present without additional action to support
11 transition to a domestic industry, and allied
12 non-Chinese industry. So, it's a work under
13 progress.

14 MS. KAN: Maranda Kan, Homeland
15 Security. I have one more question for Mr.
16 Becker. As part of your post response, can you
17 include whether or not ZPMC cranes communicate
18 with LOGINK, either cranes located in this
19 country communicating with LOGINK, or cranes
20 located in other countries communicating with
21 LOGINK?

22 MR. BECKER: Yes, we'll include that.

23 MS. KAN: Thanks.

24 MS. BONNER: Thank you. Mr. Bentzel,
25 I had a follow up question on what you stated.

1 Has your organization also looked at domestic
2 companies that may be interested in getting into
3 ship-to-shore cranes, or done any scouting on
4 that?

5 MR. BENTZEL: Yes, we're in
6 discussions with a domestic company that's
7 engaged in production of other types of crane
8 equipment, and how we could help them enter the
9 market to produce for our needs. So, yes, we're
10 actively engaged with STS domestic crane
11 manufacturing market, and actually the component
12 markets to see if we can get a set of
13 recommendations that we could share.

14 So, yes, it may be the crane itself,
15 the STS crane is relatively -- I don't know if
16 we've gone through game changing changes to it.
17 So, hopefully both with respect to STS cranes and
18 containers, we can develop a market that's the
19 next generation of technology here in the United
20 States.

21 Because we suffer, I think, reading
22 the USTR report on intermodal chassis and the
23 action Section 301 that was taken by USTR on
24 intermodal chassis, I think they identified the
25 steel subsidy alone as a 270 percent subsidy, and

1 so that alone is such a factor in making it
2 difficult to compete in this market anywhere in
3 the world.

4 So, hopefully we can jump start the
5 technology, and take a leadership role in the
6 development of technology. It's ironic because
7 the United States was the nation that developed
8 intermodal shipping, and the container, and the
9 use of this. So, all of this equipment was first
10 developed here, and it's actually been
11 repatriated to other countries, and now we're not
12 in the market.

13 So, I think we'll need to develop
14 some better plans on how to do things if we're to
15 re-enter this market.

16 MR. KOCHANOWSKI: And if I could add,
17 and then protect it once it's developed.

18 CHAIR GRIMBALL: To our witnesses I'd
19 like to thank you for your testimony, this
20 concludes the first panel. Let's take a ten
21 minute break, and regroup at 11:20 for our final
22 panel. We do not anticipate a lunch break today.
23 Let's go ahead and power through, hopefully we
24 can wrap up here around 12:30, 12:45. Thank you,
25 see you at 11:20.

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1 (Whereupon, the above-entitled matter
2 went off the record at 11:08 a.m. and resumed at
3 11:23 a.m.)

4 MR. BURCH: Would the room please
5 come to order?

6 CHAIR GRIMBALL: Thank you, good
7 afternoon everyone. Just two housekeeping points
8 before we proceed with the second panel. At the
9 top of the morning I indicated that post-hearing
10 comments would be due seven days after today's
11 hearing. I've been advised that that is Memorial
12 Day, May 26 is Memorial Day.

13 So, we will accept those post-hearing
14 comments until May 27th. I'll make this
15 announcement again as we close, but just for
16 everyone's awareness now. We do have one new
17 member of the panel joining us, but let's go
18 ahead from the record, and introduce ourselves
19 once more starting with Sarah, and make our way
20 around.

21 MS. BONNER: Sarah Bonner, U.S. Small
22 Business Administration.

23 MS. SANCHEZ: Becxi Sanchez,
24 Department of Transportation.

25 MR. COOK: Ian Cook, Department of

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1 Commerce.

2 DR. STEVENS: Andrew Stevens,
3 Department of Agriculture.

4 MR. SULLIVAN: Ryan Sullivan,
5 Department of State.

6 MR. SMITH: Henry Smith, the Office
7 of the U.S. Trade Representative.

8 MR. VAN PATTEN: Tyler Van Patten,
9 Department of the Treasury.

10 MS. KAN: Maranda Kan, Department of
11 Homeland Security.

12 MS. SCHAFER: Sonja Schafer,
13 Department of Labor.

14 CHAIR GRIMBALL: Megan Grimball,
15 USTR, chair of the Section 301 Committee. With
16 that, we are ready to proceed.

17 MR. BURCH: Our first panel witness
18 will be Cary Davis with the American Association
19 of Port Authorities. You have a total of five
20 minutes, you may begin when you're ready.

21 MR. DAVIS: Madam Chair, esteemed
22 panel, thank you for the invitation to testify
23 today. I'm Cary Davis, president and CEO of the
24 American Association of Port Authorities, AAPA,
25 representing 81 public American ports from coast

1 to coast, supporting tens of millions of American
2 jobs and trillions of dollars of duty fee.

3 I'm here to address the proposal to
4 add 100 percent tariff to Chinese ship-to-shore,
5 or STS cranes. APA shares the mission of seeing
6 these cranes built in America again. However,
7 first, Congress needs to enact a production tax
8 credit for the domestic production of these
9 cranes.

10 There are no American producers of
11 STS cranes, and there haven't been since at least
12 the 1980s. A 100 percent tariff on STS cranes
13 would be added on top of a 25 percent imposed
14 last year, and 145 percent tariffs on most
15 Chinese goods. All together, this means the
16 cranes would be faced with a 275 percent tariff,
17 that is simply unaffordable.

18 AAPA has conducted a survey in
19 collaboration with the U.S. Maritime
20 Administration, or MARAD, this is the first time
21 I'm publicly discussing this data. U.S. ports
22 plan to purchase 151 ship-to-shore cranes over
23 the next decade, and 55 more are already on
24 order.

25 Ports and terminals are facing a

1 price tag of \$1.8 billion in tariffs for cranes
2 already under contract, and \$4.9 billion in
3 future tariffs for cranes purchased over the next
4 decade. Ports and terminals have no choice but
5 to pay these tariffs, and drastically scale back
6 their infrastructure modernization plans to
7 offset billions of dollars in unexpected costs.

8 In other words, that affordability
9 problem I mentioned leads to a capacity problem
10 as taxes gobble up brick and mortar projects. In
11 2018 the first Trump Administration proposed a
12 tariff on ship-to-shore cranes, but following
13 industry comments, rescinded the proposal because
14 there were no domestic producers of the
15 equipment.

16 Seven years later, nothing has
17 changed in the eyes of the law. The same exact
18 thing happened during the Biden administration
19 too. Short of rescinding this tariff entirely,
20 there are three tangible things USTR can do to
21 ease what would otherwise be a severe impact on
22 ports. First, USTR should follow precedent on
23 previous STS tariffs, and carve out the tariffs
24 on cranes contracted and ordered prior to the
25 announcement on April 17th.

1 These cranes are already scheduled
2 for delivery, and ports cannot back out of their
3 contracts. Without this relief, \$1.8 billion in
4 tariffs is basically a dead weight cost, and does
5 nothing to solve the ultimate question of
6 reshoring.

7 Two, USTR should delay the imposition
8 of this tariff by one, or two, or three years.
9 This would give time for Congress to pass a
10 production tax credit, it would give time for
11 ports to adjust their procurement plans, and it
12 would give time for manufacturers to setup their
13 factories in the United States, and or for us to
14 work with other foreign allied countries and
15 their manufacturers.

16 Three, USTR should clarify that
17 cranes are not subject to both Section 301
18 tariffs, and the reciprocal tariffs on China.
19 The Trump administration has already given a
20 reprieve to the auto manufacturing sector by not
21 subjecting them to both Section 232 and to
22 reciprocal tariffs. We should do the same in
23 this case.

24 The bottom line is that this tariff
25 is being imposed on ports without any reasonable

1 alternatives. Ports will be forced to either pay
2 the tariff, or delay crane purchases by years,
3 both of those scenarios would result in delayed
4 or canceled infrastructure projects, and the loss
5 of good paying maritime jobs.

6 Next, I would like to thank USTR for
7 soliciting and responding to feedback on your
8 ship fee proposal. By assessing fees on a per
9 voyage rather than a per port call basis, by not
10 assessing fees on small vessels on short voyages,
11 and by not placing quotas on U.S. exports, many
12 of the worst impacts that I and my colleagues,
13 many of whom are testifying, those impacts that
14 we predicted are not going to come to pass.

15 CHAIR GRIMBALL: Mr. Davis, please
16 keep your testimony on the proposed actions.

17 MR. DAVIS: Yes, Madam Chair. Madam
18 Chair, would you accept testimony on the RORO fee
19 proposal, which has not yet had an opportunity
20 for any comment period or oral testimony?

21 CHAIR GRIMBALL: This proceeding is
22 just on the tariff actions.

23 MR. DAVIS: Okay, thank you, Madam
24 Chair. I would refer this panel to AAPA's
25 written comments, as well as written comments by

1 other witnesses on those topics. So, let me
2 finish. AAPA shares your desire to see the
3 maritime industry revitalized, but tariffs on STS
4 cranes and exorbitant fees on vessels will simply
5 penalize American businesses and workers without
6 providing the proper incentives for reshoring.

7 I look forward to continuing to work
8 with the USTR, the White House, Congress, all the
9 agencies represented here, and thank you very
10 much.

11 MR. BURCH: Thank you, Mr. Davis.
12 Our next panel witness will be Charlie Jenkins
13 with Port Houston. You have a total of five
14 minutes, and you may begin when you're ready.

15 MR. JENKINS: Thank you, Madam Chair,
16 esteemed panel, for the opportunity of sharing
17 our views with you today. I am the CEO of Port
18 Houston, and my testimony today is reflective of
19 the USTR instruction to provide comment only on
20 Annex 5 of the proposed action pertaining to
21 ship-to-shore cranes and cargo handling
22 equipment.

23 Seaports are Americans' trade
24 gateway, providing access to export made American
25 products, and grown products, and import cargo

1 for the American people. The Houston ship
2 channel is the largest port for waterborne
3 tonnage in the nation, generates nearly a
4 trillion dollars in annual economic activity, and
5 supports more than 3.4 million American jobs.

6 The ship channel is home to 8 public
7 docks, and more than 200 private facilities, and
8 is the nation's petrochemical capital, and for
9 over a decade has been the fastest growing top
10 ten U.S. container port in the nation. Port
11 Houston appreciates the administration's
12 dedication to ensuring our global
13 competitiveness, and goal to secure our nation's
14 most critical industries through comprehensive
15 trade negotiations and leverage.

16 We also appreciate the
17 administration's efforts to provide a phased in
18 approach for proposed tariffs impacting our
19 maritime industries. A phased in approach is key
20 to reducing unintended consequences. However, we
21 do have concerns regarding the proposed
22 implementation time frame of the additional 100
23 percent tariff on the importation of Chinese
24 built ship-to-shore cranes.

25 In addition to the other tariffs

1 together, when stacked, total as much as 270
2 percent, would have a massive negative impact on
3 our ability to provide the necessary
4 infrastructure to millions of dollars worth of
5 cargo daily. We understand that these tariffs
6 are aimed to change consumer behavior, shifting
7 away from Chinese made cargo handling equipment,
8 and toward reinvigorating the U.S. maritime
9 industrial base.

10 This will take time. China provides
11 80 percent of the ship-to-shore cranes to
12 American ports, and developing the manufacturing
13 capacity to accommodate U.S. demand will take
14 years, not months, for the few companies
15 producing cranes outside of China to scale to
16 that size, or for an American based manufacturer
17 to form.

18 We are working alongside our fellow
19 ports, terminal operators, and trade associations
20 to chart a path forward to reshore manufacturing
21 of these highly complex and specialized cranes,
22 while reducing negative impacts to the nation's
23 ports, work force, and consumers. Port Houston
24 will need an estimated 22 additional ship-to-
25 shore cranes in just the next six years.

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1 With the help of the administration,
2 we are prepared to move our future orders away
3 from China. Yet, this does not help us with
4 current orders that are well in fabrication, and
5 have significant capital invested by American
6 ports and terminal operators. Several of our
7 nation's public ports and marine terminal
8 operators, including Port Houston, have signed
9 contracts many months ago, and have already may
10 payment toward Chinese made ship-to-shore cranes.

11 These decisions were made before
12 President Trump signed the executive order
13 imposing an additional tariff on Chinese
14 products. Port Houston has eight ship-to-shore
15 cranes under contract and in fabrication with a
16 projected delivery date of spring 2026. These
17 cranes were ordered in July of 2024, with the
18 procurement process beginning in late 2023.

19 A 270 percent tariff on those eight
20 cranes equals \$302.4 million. This would be
21 devastating to our ability to invest in our
22 terminals to meet the future cargo needs, and to
23 the jobs in our region and nation that are
24 supported by these investments. The operational
25 impact of this potential 302 million tariff is

1 equal to more than half of our port annual
2 container operating revenue, and is greater than
3 a full year of operating cash generated.

4 We encourage the administration to
5 make these tariffs forward looking, not backward.
6 Specifically we propose a grandfathering of the
7 Chinese ship-to-shore cranes that were under
8 contract and in fabrication before December 31st,
9 2024. This proposal would solve Port Houston's
10 issues, along with similar issues in Port
11 Freeport, Virginia Ports, and Ports America that
12 have ship-to-shore cranes currently completing
13 fabrication.

14 Many set to sail in the next few
15 months with a delivery this summer. Without a
16 grandfathering in of these existing crane orders,
17 jobs would be lost at our ports. We will be
18 forced to forego needed infrastructure projects,
19 and reduce the amount of jobs we can support. I
20 want to reiterate that we support shifting away
21 from China to purchase these cranes and cargo
22 handling equipment elsewhere moving forward.

23 However, we should not penalize
24 American public ports, marine terminal operators
25 for cranes that were already ordered based on the

1 trade policies that had existed at the time of
2 purchase. As a member of the AAPA, we do support
3 a production tax credit to help jump start the
4 production of STS cranes that they've
5 recommended.

6 We also, as a member of NAWA, the
7 National Association of Waterfront Employers,
8 support their suggestion that USTR for all STS
9 cranes should be exclusive from all other tariffs
10 and fees, and not stacked. We greatly appreciate
11 the opportunity to provide comment on this
12 critical issue. We stand ready to partner with
13 the administration to restore our maritime
14 industrial manufacturing, and to continue to
15 secure our nation's future. Thank you.

16 MR. BURCH: Thank you, Mr. Jenkins.
17 Our next panel witness will be Stephen Edwards
18 with the Virginia Port Authority. You have a
19 total of five minutes, and you may begin when
20 you're ready.

21 MR. JENKINS: Madam Chair, firstly
22 thank you for inviting me to participate in
23 today's hearing. I am Stephen Edwards, the chief
24 executive officer, and executive director for the
25 Port of Virginia. And I am here to ask that the

1 proposed additional tariffs on Chinese ship-to-
2 shore cranes be phased in over a period of 12
3 months.

4 Consistent with the existing
5 exclusion for cranes to fulfill contracts
6 executed prior to May 14th, 2024, and that are
7 delivered prior to May 14th, 2026. The Virginia
8 Port Authority is a political subdivision of the
9 Commonwealth of Virginia. The VPA and its
10 private operating subsidiary, Virginia
11 International Terminals, together operate under a
12 single marketing brand, the Port of Virginia.

13 We are one of the largest and busiest
14 gateways on the eastern seaboard, and we serve as
15 a market to most of America's heartland,
16 supporting farmers, logistics, and manufacturing.
17 Nationally the Port of Virginia supports nearly
18 1.3 million jobs, paying almost 90 billion in
19 salaries and wages, and more than 340 billion in
20 total annual spending.

21 In order to meet the growing demand
22 for the modernized capability, the Port of
23 Virginia is implementing a gateway investment
24 program that enhances infrastructure, and builds
25 capacity with industry leading efficiency. The

1 federal government has recognized the need for
2 these investments, with the U.S. Army Corps
3 providing 225 million towards the 450 million
4 total cost of deepening and widening our
5 channels.

6 As part of the gateway investment
7 program, the port is investing 650 million to
8 modernize one terminal within our facility, which
9 adds a further 1.4 million additional TEU, the
10 first phase of which is scheduled to open in
11 October, 2025. This includes upgrading berths,
12 yard equipment, and new ship-to-shore cranes.

13 Specifically, the port entered into
14 two contracts with ZPMC between December 2022 and
15 May of 2023 for the purchase of 12 ship-to-shore
16 cranes, eight high profile, four low profile.
17 Four of the high profile were delivered in
18 December of 2024, and the remaining eight cranes
19 are scheduled for delivery in three shipments
20 between September '25 and May '26.

21 More than 62 million has already been
22 invested in the undelivered cranes, and nearly 51
23 million balance remains. The eight high profile
24 cranes were ordered under an RFP which the port
25 issued in September of 2022. Only two

1 contractors submitted proposals, both of which
2 are Chinese owned.

3 The four low profile cranes are
4 necessary to prevent any air operations impact at
5 Naval Station Norfolk, which we share a fence
6 line. The port is paying a significant premium,
7 given the specialty nature of these cranes to
8 meet the requirements agreed upon with both the
9 FAA and the U.S. Navy.

10 After considerable research into
11 engineering and design of these low profile
12 cranes, the port determined that no other crane
13 supplier apart from ZPMC had ever built this type
14 of crane, and the port's requirements would
15 result in the largest crane of this type ever
16 built.

17 Accordingly, the port negotiated
18 exclusively with ZPMC for these STS cranes.
19 While USTR's recent investigation highlights the
20 nation's vulnerabilities arising from over
21 reliance on Chinese production of STS cranes, it
22 is important to note that the Port of Virginia
23 contracts certain content is sourced from non-
24 Chinese providers.

25 This includes all software used to

1 operate the crane, the hardware related to this
2 portion of the project is built in Japan. The
3 engineering labor related to design, equipment
4 selection, pre-shipment commissioning, and
5 domestic on site commissioning consist of U.S.
6 based engineers.

7 Furthermore, for the past decade, the
8 Port of Virginia has taken extraordinary efforts
9 to safeguard its operations and equipment from
10 any cyber security threats, Chinese or otherwise.
11 For example, before any new STS cranes are put
12 into service, they are subject to a detailed
13 forensic cyber analysis by federal law
14 enforcement agencies.

15 New cranes awaiting analysis are
16 isolated with dedicated firewalls to ensure there
17 is no contact with port networks or the internet.
18 Based on the previous removal of STS cranes from
19 the Section 301 list in 2018 and 2019, additional
20 duties were not anticipated when the port bid the
21 projects, or negotiated the crane contracts.

22 Furthermore, the exclusion afforded
23 by USTR for existing orders from the 25 percent
24 duties gave the port confidence to proceed in
25 making 13 million in additional payments over the

1 last year. Imposing additional duties at this
2 juncture amounts to a punitive cost increase,
3 which does not allow for the behavior
4 modification for which the duty is intended.

5 The Port of Virginia understands the
6 value and importance of competition in STS
7 manufacturing, and we are actively engaged in
8 efforts to increase competition, including
9 through reshoring of domestic manufacturing. The
10 proposed additional duties of up to 100 percent
11 on Chinese STS cranes would be effective in
12 eliminating future U.S. orders of Chinese STS
13 cranes.

14 However, for STS cranes presently
15 under contract in production, the imposition of
16 additional duties would be ineffective in
17 shifting the sourcing of cranes given the payment
18 is already made, the lack of existing domestic
19 manufacturing, and limited ally production.
20 Rather, the additional duty should be phased in
21 over 12 months consistent with the present
22 exclusion for cranes to fulfill contracts
23 executed prior to May 14th, 2024, and that are
24 delivered prior to May 14th, 2026.

25 Under the existing 25 percent duties

1 on Chinese STS cranes that became effective in
2 September 2024. This will maintain certainty and
3 consistency for industry investments while
4 effectively shifting the sourcing of future
5 orders. Finally, the proposed duties should be
6 treated as industry specific duties, similar to
7 steel, aluminum, and automobiles, and should not
8 have a cumulative effect.

9 Because the rate of duty from such
10 stacking exceeds what is necessary to achieve the
11 administration's intended policy goals. Thank
12 you, and I would be glad to answer any questions
13 the committee might have.

14 MR. BURCH: Thank you, Mr. Jenkins.
15 And our last panel witness will be Kathy Metcalf
16 with the Chamber of Shipping of America. You
17 have a total of five minutes, you may begin when
18 you're ready.

19 MS. METCALF: Yes, good morning, good
20 afternoon, not sure what it is right now. It's
21 good to see everybody again, it's only been a
22 month, and I feel like we're good friends here.
23 So, we appreciate the attention you paid to our
24 testimony in the previous hearing, we appreciate
25 the changes that were made. We understand and

1 respect the fact that this testimony is to
2 address specifically Annex 5.

3 I would ask Madam Chair and the
4 committee's indulgence, there's a couple general
5 comments I would like to make not specific to any
6 of those annexes, but in general. I'll start,
7 and you stop if you --

8 CHAIR GRIMBALL: I'll just say up
9 front, just a reminder what I said at the top of
10 the hearing, that this is about the tariff
11 actions. So, to the extent that your testimony
12 goes beyond that, in fairness to other witnesses
13 who may have wanted to talk about similar issues,
14 we will have to cut off that testimony. Please
15 proceed.

16 MS. METCALF: Yes, ma'am, that's
17 fine. In accordance with what's contained in
18 Annex 5, and I'm not going to say and Annex 1
19 through 4, because that's not what we're talking
20 about. Based on the productive discussions
21 between the United States and China in Geneva
22 earlier this month, we believe that USTR should
23 consider staying a final decision on Annex 5.

24 I won't say anything else. But if it
25 happens to be the other ones as well, we think

1 it's counter productive to have tariff
2 negotiations going on on goods and services, but
3 then attempt to impose tariffs, port fees on the
4 cranes on the very conveyances that are used to
5 actually transport and move that cargo, that's
6 what I'm trying to say.

7 And I hope I'm staying within the
8 bounds here. The important thing, and I almost
9 kind of could stop at a minute 48 right here,
10 because it would be very easy for me to say what
11 they said. We represent shipping companies, we
12 don't represent crane manufacturers or ports, but
13 we use them.

14 So, our position on Annex 5 has been
15 and continues to be this is yet another added
16 cost to the transportation chain, and it
17 ultimately is going to cost ports, it's going to
18 cost shipping companies, ultimately it's going to
19 cost the American consumer. We believe in U.S.
20 reinvigorating everything, including Annex 5,
21 that this decision is intended to achieve.

22 But it's a movie, it's not a
23 snapshot, it's a transition. And we urge the
24 USTR, in the timing of whatever final decision is
25 made Annex 5, to consider that particularly, as

1 Mr. Bentzel said in the earlier panel, to at
2 least evaluate who and what are out there that
3 are not Chinese, that will be able to help us
4 replace those products and tariff goods as we
5 possibly can.

6 And this may be a record, the only
7 thing else I would say to you kind folks is our
8 approach, and I think yours is as well, do no
9 harm. We need to appropriately penalize the
10 Chinese violations as your investigation found,
11 absolutely. But we cannot harm U.S. assets and
12 the process by which we can create those
13 availabilities in the United States.

14 It's kind of a bumper sticker,
15 incentivize, don't penalize unless you have to.
16 Thank you.

17 MR. BURCH: Thank you, Ms. Metcalf.
18 And Madam Chair, this concludes testimony from
19 this panel.

20 CHAIR GRIMBALL: Thank you. We will
21 now proceed with questions from the government
22 panel.

23 MR. COOK: Ian Cook, Department of
24 Commerce. Mr. Edwards, how long does it take to
25 typically have an STS crane be delivered after

1 it's been ordered or contracted for? And then if
2 you could walk us through the typical RFQ process
3 for the purchase order, invoicing, and delivery
4 process. And then if you have any sample
5 documents, we'd love to see those in a post-
6 hearing submission.

7 MR. EDWARDS: Thank you all, I would
8 be happy if we can be protected, actually it's a
9 FOIAable item, so we can share our contracts with
10 you, I don't perceive that to be a problem. To
11 answer the question, typically from order, so an
12 RFP will be issued against a technical
13 requirement to the marketplace.

14 It will be a publicly available
15 document on our website, and interested
16 manufacturers will be notified. Upon receipt and
17 award of a contract for a typical ship-to-shore
18 crane, presently about two years from signature
19 to delivery. There will be an initial up front
20 payment, there will be progress payments, and
21 there will be a final commission payment upon
22 delivery and commissioning.

23 In our case, of the 12 ordered
24 cranes, 4 are delivered, paid, commissioned, and
25 4 would fit that two year window. The low

1 profile cranes, because of their special nature,
2 are on a longer delivery requirement, so they are
3 on a longer production cycle, simply because we
4 have to build and strengthen our berths to
5 accommodate them because of the sheer weight of
6 those cranes.

7 MR. COOK: Thank you.

8 CHAIR GRIMBALL: Mr. Edwards, I know
9 that you mentioned that it wouldn't be a problem
10 with submitting the document, I think a contract,
11 but just for your awareness, should there be any
12 concerns, we do have mechanisms to submit
13 documents using our business confidential
14 mechanisms, so just for your --

15 MR. EDWARDS: We are a public
16 authority, so I believe they would be public
17 anyhow, and if they're not, they would be
18 redacted accordingly.

19 CHAIR GRIMBALL: Okay, thank you.

20 MR. JENKINS: If I could please add
21 to the question, Port Houston, we just recently
22 did a crane procurement. The ZPMC cranes was two
23 year, the European manufacturer built in China
24 was three years. That's not the procurement,
25 that's actually the contract to delivery.

1 MR. VAN PATTEN: Thank you. Tyler
2 Van Patten, Department of the Treasury. Mr.
3 Edwards, another question for you, and this is
4 the same question we asked in the last panel, but
5 I think it's an important one, so I'll reiterate
6 it, and give you an opportunity to weigh in as
7 well. Why haven't existing Section 301 tariffs
8 been enough for ship-to-shore crane makers to
9 invest and produce in the United States?

10 MR. EDWARDS: I think with all
11 respect, you have to ask them that question
12 rather than us. We placed our orders at a point
13 in time when there was zero tariff on ship-to-
14 shore cranes. We subsequently have met with the
15 NSC as well, and I think the desires of the NSC
16 and the administration are crystal clear as to
17 how we would consider where future orders would
18 be placed.

19 We have not placed any orders from
20 the Port of Virginia since the 25 percent tariff
21 was introduced.

22 MR. SULLIVAN: Ryan Sullivan,
23 Department of State. Mr. Davis, do the
24 components in Annex 5 adequately capture the
25 significant components of the ship-to-shore

1 cranes?

2 MR. DAVIS: Can you say anything more
3 about the question?

4 MR. SULLIVAN: So, the components
5 that are captured in Annex 5 of the proposed
6 action, do you feel like it captures all of the
7 components that we would need to capture within a
8 ship-to-shore crane?

9 MR. DAVIS: If I can, let me look at
10 that, and respond to the panel in writing
11 afterwards.

12 MR. SULLIVAN: Okay, and I have a
13 separate question. What is the typical life span
14 of a ship-to-shore crane in our ports?

15 MR. DAVIS: I think that's a great
16 question, the operators at this table probably
17 have a better sense of it. But we usually talk
18 about that on the order of 20 to 30 years, that's
19 a rough guesstimation. Something that's of note,
20 and relevant to the policies that we impose here
21 is that the conditions that the cranes are
22 operating under will have a big difference on
23 their life span.

24 So, if you're in a particularly
25 windy, saline, earthquake prone zone, you're

1 going to need some highly specialized equipment
2 to operate there. So, it's dependent on that and
3 many other things, but I would defer to the
4 operators here who are working with this
5 machinery day in and day out.

6 MR. JENKINS: So, from Port Houston's
7 perspective, we purchased cranes in '07 for a new
8 bay port complex, they've already been replaced.
9 There's a couple issues in play, one is the life
10 span of the crane, and the other is the changing
11 and shifting technology driving to the best
12 value.

13 So, some of the cranes we have
14 replaced were very good cranes, state of the art
15 2007, but did not have the production capacity of
16 some of the newer models, which from a cost
17 factor required them to be replaced.

18 MR. EDWARDS: I'll confirm, we are
19 typically looking at a 25 year life cycle on a
20 ship-to-shore crane in high production.

21 MR. SULLIVAN: And would you say that
22 the percentage of purchases are -- I guess break
23 down the percentage of cranes that are purchased
24 for replacement, versus for modernization of
25 ports, so like newly implemented cranes.

1 MR. JENKINS: So, of the current
2 cranes in our fleet, we have eight new cranes
3 coming under the contract with ZPMC, six of those
4 are replacement, two are new. Then if you look
5 at the 22 going forward, they're actually all
6 new. And then immediately after we get into a
7 replacement cycle.

8 MR. EDWARDS: In our case of the
9 order of 12 the 4 that arrived replaced 2, the
10 next 4 will replace 4, and the final 4 will be
11 new, so 6 and 6.

12 MR. DAVIS: I would say those ratios
13 hold for about the national picture.

14 MS. KAN: Maranda Kan, Department of
15 Homeland Security. Can you discuss how rubber
16 tire gantry cranes are used in U.S. ports? And
17 I'm sorry, I should have directed this question
18 to Mr. Davis. Once again, can you discuss how
19 rubber tire gantry cranes are used in U.S. ports?

20 MR. DAVIS: Yeah, sorry to keep doing
21 this, but I would probably defer to the operators
22 on the panel. I would just say at a super high
23 level, the RTGs, as we call them, are moving the
24 boxes once they've hit the tarmac. So they've
25 come off the ship, they've hit the tarmac, and

1 now the box is going to its next place, whether
2 it's a truck depot, or rail depot, or directly
3 onto rail, whatever it might be, that's where the
4 RTG comes into the supply chain process.

5 MR. JENKINS: So, at Port Houston we
6 have about 170 RTG cranes, as Cary said they
7 offload truck to a buffer yard, a storage yard,
8 either to a ship, or back out to the rail, or to
9 the road. All of our RTG cranes are purchased
10 from Kone from Finland, and actually made in
11 Poland. ZPMC has bid on those, and their work
12 product isn't as high quality as what we believe
13 Kone is, so we've never purchased ZPMC RTG
14 cranes.

15 MR. EDWARDS: In the case of the Port
16 of Virginia, we do not operate RTGs, we operate
17 what are known as rail mounted gantries, so they
18 are larger, wide span on rails. We presently
19 have 123 all built from Kone, the same Finnish
20 company, all manufactured in Poland. We have a
21 further 36 being delivered presently, all from
22 Poland.

23 MS. KAN: Thank you for answering.
24 My follow up question was do you know who the
25 major manufacturers of rubber tire gantry cranes

1 are, so can you name the manufacturers
2 themselves?

3 MR. EDWARDS: I'll give it a shot,
4 and then perhaps Mr. Jenkins can fill in my
5 blanks. You have Kone, Finnish, Kalmar, Finnish,
6 ZPMC, Chinese, Sany, Chinese, PACECO, Japanese.

7 MR. DAVIS: Is Liebherr in that
8 market? Possibly Liebherr.

9 MR. JENKINS: Possibly, but I'm not
10 sure.

11 MR. DAVIS: Okay.

12 MS. KAN: And I think you answered
13 this already, from which countries are the cranes
14 sourced? I heard China, Finland, Poland, what
15 did I miss?

16 MR. EDWARDS: And Japan.

17 MS. KAN: Japan, thank you. Do
18 domestically produced and imported rubber tire
19 gantry cranes utilize Chinese steel, or other
20 parts, components, or assemblies from China?

21 MR. EDWARDS: To answer your
22 question, I think all the manufacturers we
23 mentioned were overseas, so there was no domestic
24 name on that list.

25 MR. VAN PATTEN: Thank you. Tyler

1 Van Patten, Department of the Treasury. Mr.
2 Davis, one more question for you, you referred to
3 a production tax credit proposal. I'd like to
4 hear more detail on your proposal there,
5 specifically how this would achieve the objective
6 of obtaining the elimination of Chinese acts,
7 policies, and practices, or counter China's
8 dominance in the sector?

9 MR. DAVIS: Absolutely, thanks for
10 the question. I would ask to not have to go into
11 details, I don't think the legislative proposal
12 is quite right, and indeed we're on the doorstep
13 of getting some congressional champions to
14 introduce it, at which point it's all public, and
15 I'm glad to talk about it, and frankly push for
16 political support for the bill.

17 But this is a product of there was
18 some talk earlier about a working group among
19 ports, terminals, OEMs, the government, financial
20 backers, financial institutions, and this bill is
21 one of several products to come out of that
22 working group, and has the full support of the
23 highest levels of the executive branch, including
24 the prior administration and the current
25 administration.

1 And it is basically a federal tax
2 credit for -- based on the final selling price of
3 the unit for the manufacturer of that unit with
4 an escalator if there's a threshold of American
5 content in the unit. Hifalutin way of saying
6 it's a tax credit for making these things in
7 America, and you get an even higher credit if you
8 source, 90 percent is the number we've decided
9 on, 90 percent of the content from domestic
10 sources.

11 That is the thrust of the
12 legislation, there will have to be a lot of other
13 nuances that we'll work out.

14 MR. JENKINS: A brief add to that, as
15 I understand it from the working group, there is
16 a necessity for at least two facilities, one west
17 coast, one gulf east coast, can't go through the
18 Panama Canal, it's longer to go around South
19 America than to one of the other continents. The
20 second issue is there is enormous competition for
21 the properties that those facilities could be
22 manufactured on with ship building.

23 Which is also in a transitional
24 phase, and the biggest concern we've had from
25 meeting with all the manufacturers, both with the

1 associations and individually, is the time to get
2 it to use, and primarily with federal permitting
3 requirements, because there's not enough existing
4 capacity to do it in a current facility.

5 MS. BONNER: This question is for Mr.
6 Davis. Mr. Davis, in your comment you seek a
7 delay on ship-to-shore cranes to allow ports to
8 build out their infrastructure. If ports buy up
9 ship-to-shore cranes during the delay from China,
10 will there be market incentives for new entrants
11 to produce in this sector?

12 MR. DAVIS: Thank you for the
13 question. I think our conversation that we were
14 just having about the supply side incentives, I
15 am hopeful, bullish, and optimistic that given
16 the work of industry alongside government, with
17 the kick in the pants, if you will, of the
18 proposed manufacturing incentive, can get it done
19 to reshore to some extent ship-to-shore
20 manufacture, as well as other cargo handling
21 equipment.

22 MR. SMITH: Henry Smith, USTR. This
23 comment is for Mr. Davis. In a prior comment
24 AAPA said in relevant part, if USTR does not
25 remove STS cranes from the new list of Section

1 301 tariffs, it should take one of two actions to
2 provide relief for those ports that have signed
3 contracts for STS cranes.

4 First, USTR should delay the
5 effective date for the STS crane tariffs by at
6 least two years. This would serve the dual
7 purpose of providing relief to ports that have
8 already signed contracts, and incentivizing
9 domestic production. Second, USTR should exclude
10 STS crane purchases from the tariff for those
11 ports that signed contracts to procure cranes
12 prior to the publication of the new tariffs in
13 the Federal Register on May 28th, 2024.

14 This would put all ports purchasing
15 STS cranes on a level playing field, and not
16 arbitrarily advantage certain ports and the
17 regions they support over others. Following a
18 proceeding in a different Section 301
19 investigation, you may recall USTR allowed for
20 exclusions for cranes that fulfilled contracts
21 executed prior to May 14th, 2024, and that
22 entered the United States prior to May 14th,
23 2026.

24 You're again asking for a major delay
25 or other considerations on these STS U.S. lines.

1 On what basis are we to assess that your members
2 would use any potential additional time to move
3 away from Chinese suppliers?

4 MR. DAVIS: Thank you for the
5 question, the answer is two fold, and very
6 simple. One is I'm confident that we're in
7 somewhat of a new playing field because of the
8 progress of the working group, the industries
9 coming together to agree that were there domestic
10 alternatives available, we would look that way to
11 bring the OEMs to the table, to show them the
12 government funded research that we've done with
13 the U.S. Department of Transportation.

14 That lays out the extent of the
15 immediate, medium term, and long term order book
16 for these things, and for the drafting of the
17 manufacturing incentives. Sorry, I'm getting a
18 little feedback. Maybe it's not me -- it's
19 church bells. So, that was one part of the
20 answer, basically the work of the industry
21 alongside government.

22 And the second part of the answer is
23 rather simple, which is we didn't have the same,
24 what I would call apocalyptic level of tariffs
25 that we're talking about here at the table, which

1 would make the equipment almost completely
2 unaffordable. Even if ports wanted to undertake
3 the bill, they'd be foregoing other critical
4 investments that would probably obviate the need
5 for the cranes in the first place.

6 Mr. Edwards had mentioned the need to
7 bolster the holding capacity of the port just to
8 accommodate the size of the cranes, those are the
9 other types of multibillion dollar investments
10 that would kind of be stuck in between. Okay, do
11 we pay 270 percent more but we can't make the
12 necessary upgrades to the terminal to even hold
13 this type of thing? So, I hope I'm just showing
14 the quandary that these businesses are in.

15 MS. SCHAFER: Follow up question for
16 Mr. Davis. So, I'm looking at page three of your
17 written testimony on sort of the plan to acquire
18 STS cranes from your members, or from a survey of
19 U.S. ports. And just a question on the third
20 column about assuming an 80 percent rate, where
21 did you get that number for assuming 80 percent
22 come from China, and where do the remaining 20
23 percent come from?

24 MR. DAVIS: We're looking at the
25 first graph on that page, correct?

1 MS. SCHAFER: Yes.

2 MR. DAVIS: These data are from
3 direct questions posed to port authorities, I'll
4 try to pull the response rate on this. We have
5 approximately 81 port authorities in our trade
6 association, these data are pulled from questions
7 asked of those ports in the last 60 days, and
8 synthesized, and anonymized.

9 MS. SCHAFER: And the 80 percent rate
10 that come from -- assumed come from China, is
11 that from the respondents saying that 80 percent
12 generally come from China versus other places?

13 MR. DAVIS: That's correct.

14 MS. SCHAFER: Okay.

15 MS. SANCHEZ: Becxi Sanchez,
16 Department of Transportation, this question is
17 for Mr. Jenkins. What time frame does the Port
18 of Houston have for planning for infrastructure
19 development and investment?

20 MR. JENKINS: We have an investment
21 program that looks out ten years, five year,
22 three year, one year. So we have many different
23 cycles from long range to short range planning.

24 MS. SANCHEZ: Thank you.

25 MR. COOK: Ian Cook, Department of

1 Commerce. Mr. Jenkins, what time frame would be
2 necessary to transition away from Chinese origin
3 handling equipment?

4 MR. JENKINS: Well, that question
5 would best be asked to the manufacturers. We are
6 hearing that the minimum trial crane would be a
7 three year process, and up to ten years for full
8 production capacity of the United States, but
9 that's me interpreting what they've said. We can
10 respond, or get them to help respond in writing
11 post-hearing.

12 MR. COOK: Great, thank you.

13 MR. DAVIS: May I clarify the data?
14 Unless I'm mistaken, and if I'm mistaken I'll
15 correct it in the record. The first row already
16 contracted, that's an actual number as collected
17 from industry survey, and then the following
18 three rows are estimated based on the 80 percent
19 market share rate that we've pretty much all
20 coalesced around.

21 MR. SMITH: Henry Smith, USTR. This
22 question is for Mr. Jenkins. What additional
23 duty rate will support the countering China's
24 targeted dominance of ship-to-shore cranes and
25 other cranes used in ports?

1 MR. JENKINS: Well, I can speak
2 through an analogy. In our recent crane
3 procurement we had two proposers, Kone, based out
4 of Finland, and ZPMC. ZPMC was one year faster
5 in the production, and \$100 million cheaper for
6 the eight cranes than Kone. Kone's cranes were
7 manufactured in China.

8 The only thing that we're buying from
9 China is paint, labor, and steel. All of the IT
10 drives, the brakes, the operator cab, the screens
11 is all U.S. or European sourced. So, the frame
12 was basically \$100 million more, and an extra
13 year in delivery, and that is with it still being
14 built in China.

15 If that crane had been built in
16 Poland or Japan, I'm expecting it to be more, I
17 don't have the data for that.

18 MR. SMITH: Relatedly, in a prior
19 comment, Port Houston said that STS cranes
20 themselves are not high tech products, they are
21 in reality just large metal structures. Likewise
22 in a prior comment, the Georgia Port Authority
23 said that it installs of critical technology
24 components in America with equipment manufactured
25 in Japan, Taiwan, and the United States.

1 If these are simple steel structures,
2 and components can be sourced from Japan, Taiwan,
3 and the United States, then isn't the only
4 impediment to U.S. production really the
5 artificially low prices from Chinese producers
6 which result from Chinese targeting these sectors
7 for dominance?

8 MR. JENKINS: Considering Kone and
9 ZPMC are doing the same thing in China, on the
10 exact same spec, and one is \$100 million less, it
11 could be a conclusion.

12 MR. SMITH: Just as follow-up, what
13 in your opinion is preventing Kone from moving
14 their production of the steel components to
15 Europe?

16 MR. JENKINS: Cost of materials and
17 labor, or subsidies, which we don't know about.

18 MR. DAVIS: Yeah, agree completely.
19 And I said it before, I take a much more
20 optimistic and bullish view, which is that
21 although it's not at the end of the day up to a
22 port authority to hold the hand, and guide an OEM
23 to setup shop here in the U.S. or in an ally
24 country, those conversations are well under way.

25 And potentially even siting some of

1 these manufacturing facilities at U.S. ports is
2 part of the combo too. So, I'd just take a
3 pretty optimistic view on it, it's happening,
4 it's slow, it's methodical. There's a wait and
5 see approach when the government has such a heavy
6 hand in equities in the matter, but it's
7 happening.

8 MS. BONNER: Mr. Jenkins, Sarah
9 Bonner from SB, I just had a follow up to make
10 sure I got this from your testimony. But in your
11 written statement you detailed that the Port of
12 Houston has ordered ship-to-shore cranes that are
13 currently under contract, and on their way to the
14 United States. Can you clarify when the delivery
15 is expected, and if you expect any issues with
16 that delivery's time line?

17 MR. JENKINS: The delivery of the
18 first cranes I believe are first quarter, and
19 then end of first quarter, beginning of second
20 quarter for the second four. The ship bringing
21 the cranes can bring four maximum at a time. So,
22 the first delivery will come with four, and then
23 the second delivery will come with four.

24 MS. SCHAFER: Sonja Schafer,
25 Department of Labor. For Mr. Jenkins, so

1 continuing the current conversation, but has the
2 Port of Houston looked into sourcing cranes from
3 the United States or elsewhere?

4 MR. JENKINS: Yes. We have met with
5 each of the major crane manufacturers, we are
6 talking real estate transactions, long term
7 leases, as many things as we can to try to do our
8 port to incentivize them to reshore them to
9 America. But it has to be a good business deal,
10 we're just part of a big puzzle, but we're
11 promoting those conversations as are our other
12 partners.

13 MS. SANCHEZ: Becxi Sanchez,
14 Department of Transportation. Do you know
15 Konecranes?

16 MR. JENKINS: Very well.

17 MS. SANCHEZ: Okay, so this question
18 is about it, in July 2024 Konecranes announced
19 that it was expanding its network of steel
20 structure providers and subcontractors to meet
21 domestic manufacturing criteria in the U.S., and
22 that it could manufacture a full range of
23 domestic manufacturing compliant port cranes in
24 the U.S., including ship-to-shore cranes. Have
25 you spoken with this producer to source cranes

1 from the United States?

2 MR. JENKINS: Yes, we've spoken with
3 Kone quite a few times, and we're in constant
4 conversation with them.

5 MS. SANCHEZ: Thanks.

6 MR. EDWARDS: If I may add on the
7 Kone question, for both the Port of Houston and
8 the Port of Virginia, as we mentioned, all of our
9 yard cranes are Kone, so we have very strong
10 corporate relationships. And in our case in the
11 Port of Virginia, we chose Kone over Chinese
12 alternatives at the time of those orders, and I'm
13 sure that was the case for others.

14 We've also had conversations with
15 Kone about -- because essentially we are now in
16 if there is to be a domestic manufacturing
17 waterside opportunity, then ports for economic
18 development purposes, may wish to have that in
19 their port. And therefore I am actually in
20 competition with the Port of Houston on that very
21 conversation with people like Kone about where
22 would you like to do your manufacturing. As of
23 today however, there is no capability to build.

24 MR. COOK: Ian Cook, Department of
25 Commerce. This is for Mr. Edwards. To clarify,

1 when you said these duties should be phased in,
2 are you suggesting they should start low, and
3 increase over 12 months, or that they only begin
4 after 12 months?

5 MR. EDWARDS: No, what I'm requesting
6 is that the current 25 percent allowance, which
7 is if they were ordered prior to May 14th, 2024,
8 and delivered prior to May 14th, 2026, that that
9 be respected for these proposed 301 tariffs.
10 That is the ask. After May 14th, 2026, I would
11 suggest that is a matter for the USTR as to what
12 you believe to then be the appropriate tariff.

13 MR. COOK: Thanks.

14 MS. SANCHEZ: Becxi Sanchez with the
15 Department of Transportation. This question is
16 for Ms. Metcalf. What impact will the proposed
17 tariff have on the availability of containers in
18 your view?

19 MS. METCALF: Not being experienced
20 with the whole way the container crowd -- I can
21 tell you what we know, our past, and I think
22 probably our colleagues, the World Shipping
23 Council, who represent a lot of the large
24 container lines that we do not represent, there
25 is an imbalance of where containers are located

1 right now.

2 So, I don't know that the tariff
3 itself is going to make it any worse. But I
4 think the potential there most certainly is.
5 It's just yet another cost factor, and we've
6 still got to figure out how to get empty boxes
7 where they need to get loaded, and vice versa.
8 So, thank you.

9 MS. SANCHEZ: Thank you. And based
10 on the experience that you have during and
11 immediately after the pandemic, how do you see
12 the shortages of containers being disruptive for
13 port operations? Yes, for you.

14 MS. METCALF: I think I would
15 probably punt that to my two colleagues in the
16 center here. I mean, we basically, we load them,
17 they're manifested, but then to see how it
18 impacts on the actual whole supply chain, I would
19 defer to the experts. Thank you.

20 MR. EDWARDS: I'll give it a shot if
21 you like. So, when we're talking about the
22 export business, there are two ways to consider,
23 there is port based export business, which
24 largely in North America is supplied by surplus
25 containers generated from imports within the port

1 area. There is then cargo coming out from the
2 heartland, or the Midwest, which is then more at
3 risk from the need to reposition containers.

4 Therefore, what you have seen as a
5 response is in both our case, and I certainly
6 know the cases of Houston also, much more
7 significant bulk to port transit with
8 transloading to containers within port areas.
9 So, there has been an adjustment by the train to
10 actually do significantly more transloading from
11 bulk.

12 So, I think rail moving, and bulk
13 moving in rail to port areas where it is then
14 transloaded, as opposed to trying to reposition a
15 box in for an agricultural commodity. That was
16 entirely the situation during the pandemic, as
17 Mr. Bentzel alluded to, the boxes were moved back
18 to Asia for higher paying freight than they were
19 moved say to the midwest, to then be delayed for
20 a lower paying commodity.

21 MS. SANCHEZ: Thank you.

22 DR. STEVENS: This is Andrew Stevens
23 from U.S. Department of Agriculture. Kathy
24 Metcalf, thanks for coming back, we appreciated
25 your testimony last time. What additional duties

1 rates will support the countering of China's
2 targeted dominance of ship-to-shore cranes and
3 other similar cranes used in ports?

4 MS. METCALF: That's a loaded one,
5 and hy, I'm getting ready to retire anyway, so if
6 I say the wrong thing -- no, here is our
7 perspective. And perhaps it's because to me,
8 tariffs and user fees, tariffs in the form of
9 user fees, whatever you want to call them, is an
10 animal of a course I almost flunked at the U.S.
11 Merchant Marine Academy, which is basic
12 economics.

13 Focusing on the shipboard stuff, our
14 perspective is and always will be free and fair
15 trade. So, we don't think in the perspective of
16 what additional duties do we need, we think in
17 the perspective of which ones do we need to get
18 rid of after what we see are very promising
19 negotiations between the administration, China,
20 and many other countries.

21 I hope you don't think I'm dancing
22 there, but that truly is, from somebody that just
23 sailed on ships for eight years, and then came
24 ashore, that's our perspective. Anything
25 artificial creates some bubbles that you have to

1 deal with, and that's what we're hoping
2 eventually we can --

3 DR. STEVENS: So, would that be the
4 same answer for any additional duty rates on
5 intermodal containers or chassis for those?

6 MS. METCALF: Yes, it would.

7 DR. STEVENS: Great, thank you.

8 MR. SULLIVAN: Ryan Sullivan,
9 Department of State. Ms. Metcalf, I want to
10 address one important part of this conversation
11 that I think has been missing today, and that's
12 regarding ships that transport cranes. Obviously
13 we don't have any U.S. flagged crane carrying
14 vessels, but could you illuminate for this panel
15 the current supply and market dynamics for this
16 niche sector of vessels?

17 MS. METCALF: Well, frankly we would
18 love to have them join the Chamber of Shipping,
19 but we don't have any of the bulk crane carriers
20 as members, which we think is, aside from our
21 revenue stream, we think it's a problem for
22 bulkers in general. What I understand from
23 talking to many colleagues that were at the first
24 hearing that represent the products.

25 Is that given the exiting global

1 supply, and the voyages in which they run,
2 because of the low value of the cargo, they can't
3 make up for a million dollar port fee or port
4 call in the United States. Versus container
5 ships, and I'm not trying to throw the container
6 ships under the bus either, but versus the higher
7 value cargos that are carried on container ships
8 in one trip.

9 Paying a million dollars for which
10 may be 30 or 40 million dollars in cargo on the
11 vessel versus on grain cargos, which may end up
12 being only three or five million dollars. I
13 don't know if that answered my question, but as
14 far as --

15 MR. SULLIVAN: No, I want to talk
16 about the vessels that carry cranes, ship-to-
17 shore cranes.

18 MS. METCALF: No, that's a very
19 special vessel, heavy lift.

20 MR. EDWARDS: Yeah, so just to
21 answer, the heavy lift vessel, to put it in
22 perspective, a flat deck on which the cranes are
23 loaded, rolled on, rolled back off in a multi day
24 operation, so you're floating the ship to meet
25 the quay wall at any time, ZPMC supports this

1 with their own fleet of vessels, they're a
2 vertically integrated company.

3 A number of other companies will use
4 Dutch, or other heavy lift specialists. In a
5 U.S. environment when we move cranes between
6 terminals, we don't have those vessels, so within
7 the Jones Act we tend to use a barge operation,
8 which is obviously a more complicated operation,
9 so we go barge and tug.

10 Which is a less safe operation, so
11 you're typically going to try and stick much
12 closer to coastal waters, and the Coast Guard is
13 going to take a much closer look before you sail,
14 but the nature of it is we simply don't have
15 those -- we, to my knowledge, don't have that
16 capability within the Jones Act fleet.

17 MR. JENKINS: I fully agree, it would
18 either require the waiver of Jones Act, new Jones
19 Act vessels being built to be able to transport
20 cranes from U.S. manufacturing to the U.S. ports.

21 MR. DAVIS: And I hope the impression
22 that I'm giving today is that among industry in
23 conjunction with government, lots of these
24 reshoring conversations are well underway. And
25 without getting into details, there are

1 conversations underway about Jones Act compliant
2 vessels that could do this type of work.

3 MS. SANCHEZ: Mr. Jenkins, Becxi
4 Sanchez, Department of Transportation. I think
5 you have comments also on your experience during
6 the pandemic and immediately after the pandemic
7 regarding shortage of containers, you had some
8 thoughts about it in terms of how that would
9 impact port operations, or the experience for the
10 port of Houston?

11 MR. JENKINS: I'd be happy to answer
12 the question in written testimony. I'm sorry, I
13 wouldn't be able to speak to that as an expert.

14 CHAIR GRIMBALL: Okay, with no more
15 questions from the panel, this concludes panel
16 two. Just as a reminder, once again we will
17 accept post-hearing comments, including post-
18 hearing rebuttal comments until May 27th. Thank
19 you for your views, and for your testimony
20 everyone who provided them today. And thank you
21 for your interest in participating in this
22 hearing. We're adjourned, thank you.

23 (Whereupon, the above-entitled matter
24 went off the record at 12:21 p.m.)

25

1 C E R T I F I C A T E

2 This is to certify that the foregoing transcript
3 was duly recorded and accurately transcribed
4 under my direction; further, that said
5 transcript is a true and accurate record of the
6 proceedings; and that I am neither counsel for,
7 related to, nor employed by any of the parties
8 to this action in which this matter was taken;
9 and further that I am not a relative nor an
10 employee of any of the parties nor counsel
11 employed by the parties, and I am not
12 financially or otherwise interested in the
13 outcome of the action.

14

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16

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19



20 Brandon Paterson

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